

The Ordinance of 1787
and
Old Northwest Territory

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THE ORDINANCE OF 1787 AND THE OLD NORTHWEST
TERRITORY ***





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HISTORY OF THE ORDINANCE OF 1787 AND THE OLD NORTHWEST TERRITORY

(A Supplemental Text for School Use)

Prepared for the
NORTHWEST TERRITORY CELEBRATION COMMISSION
under the Direction of a Committee Representing the States
of the Northwest Territory:

Harlow Lindley, *Chairman*
Norris F. Schneider
and
Milo M. Quaife

The Federal Writers' Project Cooperating

Northwest Territory Celebration Commission
Marietta, Ohio
1937

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This book is distributed free to the school and college teachers of Northwest Territory through the state departments of education of the various states. It is offered to all others, along with an 18"×24" cartographic map of Northwest Territory in full color and art copy of Ordinance of 1787, at ten cents per copy, postpaid (coin, no stamps) by

NORTHWEST TERRITORY CELEBRATION COMMISSION
Marietta, Ohio

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INTRODUCTION

The Northwest Territory Celebration Commission, created by Congress to design and execute plans for commemorating the passage of the Ordinance of 1787 and the establishment of the Northwest Territory, takes pleasure in presenting this brief outline of the history involved, to the public, and particularly to the schools, whose students of today will be our citizens almost before we realize it.

Through the study of the thinking and the deeds of ordinary American people during the formative—usually called “critical”—period of our nation’s history, even though not so exciting or colorful as were battles and heroes, we may find some understanding of how this nation attained greatness, and provide inspiration to our own and future generations.

Through the years vast amounts of material and substantiating evidence have come to light, and as historians have been able to view this formative period in perspective, it has assumed an ever-increasing importance in the foundation upon which our civilization rests.

As yet, that accumulating recognition is largely scattered through a vast number of specialized studies and books, as various authorities have unearthed important and vital related facts.

And so this commission has asked the state historians of the states of the Northwest Territory, with Dr. Harlow Lindley as chairman, and with such acceptable assistance as they might secure, to digest the available material into this brief but coordinated summary.

It is impracticable and unnecessary, for the purposes of this book, to go into further original research. There is ample accurate material now available for these pages, the prime purpose of which is to give a fundamental knowledge to all whom it may reach, and to inspire a further study by those so inclined, to the end that America may know why America is, and what it really rests upon, and what may be our surest and soundest path for progress to the continued betterment of mankind through government.

NORTHWEST TERRITORY CELEBRATION COMMISSION,

GEORGE WHITE, *Chairman*
E. M. HAWES, *Executive Director*

FOREWORD

This brief elementary textbook presenting the history of the Ordinance of 1787 and the establishment of civil government in the old Northwest Territory out of which was created later the states of Ohio, Indiana, Illinois, Michigan, Wisconsin and part of Minnesota, has been prepared at the suggestion of the Northwest Territory Celebration Commission for supplementary study in the schools.

Under the instructions of the commission, and according to our own concepts of the purposes of this book, it has seemed impossible to attempt original research or study into less substantiated phases of the history covered. Rather, it has been our purpose to digest in correlated form, and briefly, the fund of material which already has been developed by countless individual studies and writings.

This available material, although now generous in amount and amply authenticated, requires some explanation. It is to be remembered that the people of our early westward movement and, to a great extent, of all our early history, were *makers* of history, rather than *writers* of it. There were settled communities of individuals who summarized the more humble events of life, even though these events might be more substantial and indicative than colorful armies and battles.

Resultantly, research into this history of necessity has been largely confined to the casual and incidental records of the time—letters, diaries, the meager public records and scarce newspapers and publications. This has so far resulted in many specialized studies which are available. The need now is that these be brought together into a correlated record of an epoch, which will fit itself into the fabric of our national history.

Hence this book.

Attention is called to the bibliography, which is included as an aid to further study. Even this list of published material is necessarily abridged from the more complete bibliography which is available.

Some repetition is experienced in the text, as is likely with subjects involving many ramifications and treated by different writers.

Those immediately in charge of this work have consulted with representatives of various historical agencies and a number of prominent educators in each of the states concerned.

Harlow Lindley, secretary, editor and librarian of the Ohio State Archaeological and Historical Society, as chairman of the committee appointed by the commission, has been responsible for collecting and organizing the material. The executive director of the Northwest Territory Celebration Commission prepared Chapter I and the latter part of Chapter V. Mr. Norris F. Schneider of the Zanesville (Ohio) High School, has written Chapter III. Dr. Milo M. Quaife, secretary and editor of the Burton Historical Collection in the Detroit Public Library, not only has represented the state of Michigan in making the plans for the book, but also has contributed Chapter VII.

One unique feature of the project is the fact that most of the illustrations are the work of students in the schools of the states which evolved from the old Northwest Territory. These were made possible as a result of an illustration contest sponsored by the commission.

The readers of this book are referred to the pictorial map of the Northwest Territory issued by the Northwest Territory Celebration Commission to which reference is made on page 4. This map tells the story of the evolution of the old Northwest Territory and also contains a copy of the Ordinance of 1787.

HARLOW LINDLEY, *Chairman.*

Columbus, Ohio

July 1, 1937

CHAPTER I

PRE-ORDINANCE SUMMARY

While much of the history of the American colonies has been ably presented in other school history texts, and it is not the province of this book to rehearse it, there is reason for a brief summary which will place in the mind of the reader the background for the events of which this book treats.

It is not easy to value or even to understand the forces which were at work in America unless we consider what *types of people* were involved. While most of the colonies were settled by Englishmen, this did not mean that they were always congenial. The Puritans of New England, radical in their beliefs and zealous in their doctrines, had little in common, even while they were in England, with their fellow countrymen who settled Virginia, the Carolinas, and Georgia. In between these discordant groups were the Dutch of New York, the Swedes of Delaware, the Catholics of Maryland, and the Quakers and Germans of Pennsylvania.

Beyond these national and social differences were the trends brought about by their environments in this new land. The rocky and discouraging soils of the northern colonies, even the climate itself, tended to widen the gulf between these people and the pleasure-loving folk of the South, with its broad fertile acres and mild climate. It was inevitable that the New Englanders should turn to manufacture and trade, while the South should remain agrarian, and equally inevitable that this should result in jealousy and rivalry.

But a still more vital force was at work to encourage distrust and dislike. People of that day took their religious beliefs very seriously. Even those who fled from a state church could not escape the idea of state and religion being inexorably related.

Although the Puritans of Massachusetts had fled England to gain "religious freedom," they might better have said to gain freedom for their own sort of religion, for they were as intolerant of other religious beliefs as

had been the Church of England of theirs. Indeed, Connecticut and Rhode Island were split off from the Massachusetts colony because of religious disputes. The southern colonies, still clinging to the state church of the mother country, were anathema to New England and New England to them. With the Quakers in Pennsylvania, and the Catholics in Maryland—and all zealous for their own religious contentions—the tendency was even further from, rather than toward, the building of a common nation.

And so, with diverse nationalities, religious and economic and moral distinctions; with widely varying charters from the king and jealousies between rival groups of European “owners,” we may well wonder that the colonies got along together at all.

For a century and a half the population increased, and with it the discordant feeling between at least many of the colonies. They had only one thing in common—an increasing distrust of and rebellious spirit toward the mother country and the king. This could result in the joining of forces against a common and more powerful enemy. And so it did finally. But in all this there had been no proposal for a new nation, or, more particularly, for a new theory and plan of government. True enough, there had been a convention called at Albany in 1754 for united effort against the Indians, but the colonies were not strongly in favor of it, and the king would not tolerate the union.

As lands along the coast became more occupied and therefore higher priced, and the political uncertainties more acute, the more adventurous colonists, perhaps irked by the restraint of individual freedom which any government imposes, struck out for the wilderness westward.



MARQUETTE

Drawn by Howard Petrey, Superior, Wisconsin

Also, because we are trying here to study what was in the minds of men, *why* they did this or that, it must be remembered that the world was still looking for the Northwest Passage to Cathay. As late as the outbreak of the Revolution, and even later, England was subsidizing efforts to locate this short route to the fabled East. Thus the same urge which had led Columbus to the discovery of America played a part in the development of colonial plans.

From the seventeenth century onward, French missionaries and fur traders had extended their explorations and their scattered posts, effecting alliances with the Indians, and inciting violent resistance to English and colonial approach. As late as 1749 Celoron led a considerable expedition down the Ohio River, up the Great Miami and to the Lakes, tacking notices on trees and planting leaden plates claiming possession in the name of the king of France. This had an ominous meaning, in that the French had done almost nothing in settling Ohio, whereas it was in this very direction that English settlement pressed.

During this period, which culminated in the French and Indian War, the colonies did not cooperate, although, as has already been said, the need for united effort was first publicly urged at the Albany convention. After the French and Indian war was over, and the title to the Northwest had been ceded to England, she herself became suspicious of westward American settlement, and forbade it, even to the extent of giving to the province of Quebec the lands she had previously given to the American colonies.

The rugged and fearless individualists who were most likely to settle the West were the least inclined to conform to stabilized government, especially if that government were objectionable in any of its phases. And, removed beyond the Alleghany Mountains, they would be beyond hope of subjection. Those who had already migrated to the West asked nothing from the colonies except help in defense against the Indians—and of this received very little. They were free men—perhaps the freest of any considerable group of individuals in ages of history. Ahead of them lay a wide continent, blessed with God's bounties, and, as law and restraint caught up with them, all that was necessary was to move farther westward to seemingly endless lands and natural resources—and freedom.



ROBERT CAVALIER DE LA SALLE

Drawn by Marie Kellogg, Superior, Wisconsin

In 1776 Virginia, in the fervor of her revolt, did give indication of the trend of her people's feelings through her "Bill of Rights," and this undoubtedly expressed the long restrained but culminating American idea. When revolt mounted to the utterance of the Declaration of Independence, that great document set forth in fervid terms the general principles of the rights of man. But there was nothing discernible in it as to what specific form or type of government should make those principles effective.

The Articles of Confederation, which immediately followed, were but the forced cooperation of the colonies for defensive purposes.

The soldiers, realizing fully that they probably never would be paid in sound money, with their own meager fortunes ruined by their years of struggle, and disgusted with the politics, the compromises, and ineffectiveness of the Continental Congress, turned to the idea of western lands. At least, their almost worthless pay certificates could be used in buying land from the government which had issued such money. In these far-off wildernesses they would find the freedom they craved and escape from the seeming ineffectiveness of government under the Articles of Confederation.

Congress had actually voted at the very beginning of the war, and long before the nation owned a square foot of these lands, to give western lands as bounties for military service. The separate colonies, especially Virginia, had given such bounties for service in the earlier wars against Indians and French. Washington had made a trip to the Ohio country in 1770 to select such bounty lands, and had been so impressed that he chose some 40,000 acres of his own. As hero of the troops, and the greatest single factor in preventing their mutinies, it seems certain that his enthusiasm for these lands heightened that of the soldiers.

Washington, too, saw that a western frontier peopled by veterans whose earnestness of purpose and abilities could not be questioned, would form the safest bulwark against attack by the Indians, or by the British—who if they gave up title at all, would do so unwillingly and with tongues in their cheeks. But, as yet, there was no determination, or even clearly defined suggestion as to the form of government which would apply to the United

States. The Articles of Confederation were unwieldy, undependable, and, if anything, were working against the idea of representative government.

In 1783, while the troops were in camp awaiting the signing of the Treaty of Paris, and on the verge of being discharged to go to—they knew not what—with no money, and with the rebuilding of their worlds yet before them, they expressed in writing their hopes and aspirations for their own and America's future.

This humble document, recorded by Timothy Pickering as scribe, and signed by 283 leaders of the men, set forth not only their desire for lands in the West, but for certain principles of government as fundamental to their hopes, ambitions and plans. This plan became known to history variously as the Pickering Plan, the Newburgh Petition, and the Army Plan.

Essentially, it was the innermost determination of ordinary Americans who had proved their sincerity of purpose. It was probably the first crystallized expression from the men who had fought to establish the new nation as to what its tenets of government should be. A study of this document will disclose a striking similarity to the Ordinance of 1787, when we get to that point in our history.

We must now go back to another phase of the nation's development, which was altogether human, and which is with us today. This was the element of hope for riches and private profit. In those days it was specifically called "land hunger."

All of the earliest westward colonization schemes for America were what we might call "land grabbing schemes" of various merits. To discourage this tendency many plans were evolved for the development of the West. From about 1750 one plan followed another in rapid succession. Each was an improvement over the one preceding it. One is particularly significant—that of Peletiah Webster who proposed the surveying into townships of the lands adjoining the colonies—now states—on the west, and their sale *in small lots only, and one range at a time to the westward*. This would have established a strong and well-settled frontier, without large speculative holdings, and would have conserved for orderly growth the great untold areas of the West.



GEORGE ROGERS CLARK WADING SWAMPS WITH
TROOPS

Drawn by Merle June Dehls, Vincennes, Ind.

After the Revolutionary War was over, the United States had only in effect a quitclaim deed from England to the lands north and west of the Ohio.

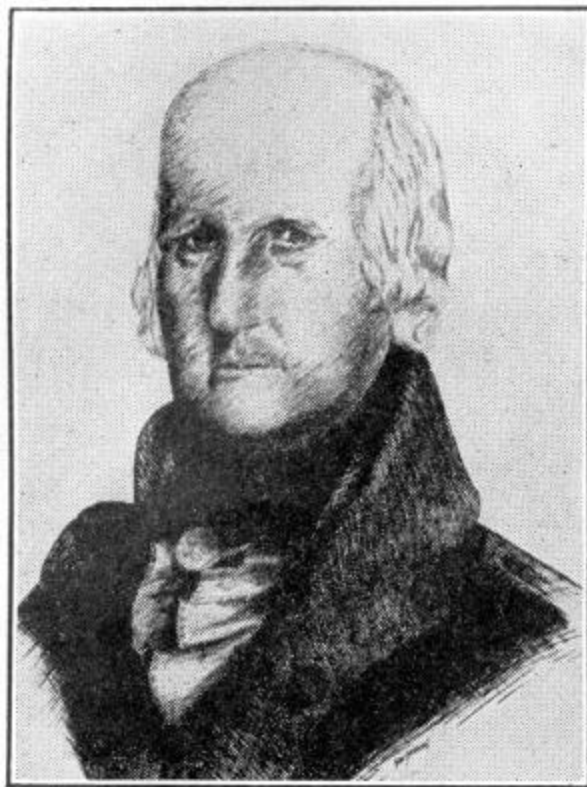
But the colonies now asserted their individual claims more vociferously than ever. There were now 13 states, in effect different and independent nations, each with a desire for expansion westward. Virginia had, of her own volition, sent George Rogers Clark into the West during the Revolution to drive the British from what were ostensibly her lands in the Illinois country. Clark had done a superb job—and claims are made that he not only acquired these lands by conquest for Virginia, but destroyed the budding Indian conspiracy that the British under Henry Hamilton were fomenting, and which, by attack from the rear, would have destroyed the entire American cause.

Connecticut and Massachusetts refurbished their charter claims and New York, through its treaty with the Iroquois Indians, made indeterminate but extensive demands to the territory.

And, lastly, there were the undeniable rights of the Indians to be acquired by purchase or by conquest.

Under pressure of states whose colonial charter boundaries had been more restricted, principally Maryland, the states with wide-flung claims were urged to cede all their western lands to the nation at large. The contention was that these lands had been won from the British by common effort and should therefore be common property. Here, at last, was a definite indication that development was to be toward one nation, rather than an alliance of 13 smaller independent governments. How strong this point really was is not certain, however, for one of the great objectives was to lessen the common debt, and thus relieve each of the states of its obligations.

However, the unified nation movement was gaining strength. Intermingling of men in the army, common purposes in defense, and now, property held in common were breaking down the old animosities.



GEORGE ROGERS CLARK

Drawn by Sam Delaney, Marietta, Ohio

New York took the lead in ceding her claims in 1780. Virginia, richest, most populous and with best substantiated claims, followed in 1784. This

was immediately followed by the Ordinance of 1784, the first plan to be evolved for the West, that made *any* reference to the principles of government. This ordinance, although passed by Congress, never became effective because it made no provisions for acquisition or ownership of land, and, in fact, there still remained the necessity of Massachusetts and Connecticut cessions and the acquisition of title from the Indians. Massachusetts and Connecticut finally ceded their rights, but there still were no clearly indicative signs of what American principles of government were to become, beyond a broader right of franchise.

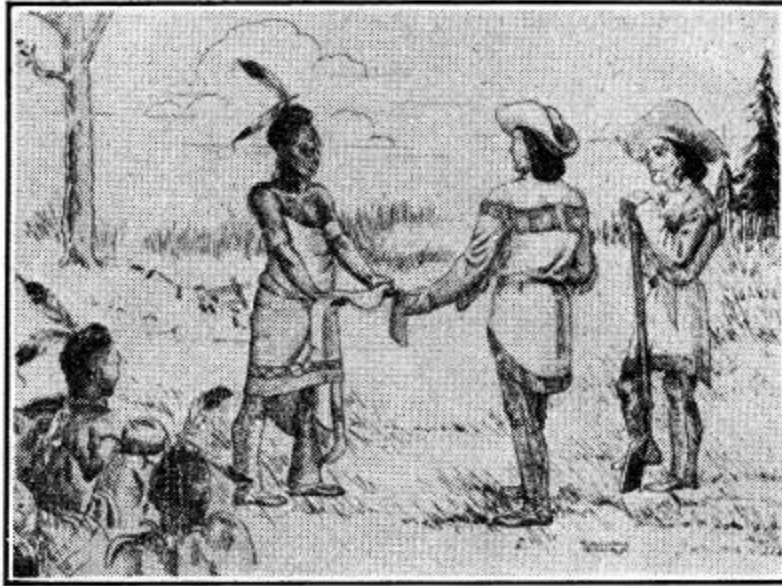
Later, Congress passed the Ordinance of 1785—commonly called the “Land Ordinance.” This did provide for the survey and sale of lands. It contained some of the proposals of wise old Peletiah Webster, made years before, for township surveys, sale by succeeding western ranges, and in plots small enough to prevent large speculation. But it said nothing about laws to go with the land, and it, too, became largely ineffective in its purpose.

And so was enacted the Ordinance of 1787 with all its portent for government built primarily for man, rather than man for government.

As the ordinance was passed by the Continental Congress sitting in New York, the Constitutional Convention was sitting in session at Philadelphia. Two months later the United States Constitution was adopted by that convention and submitted to the states for ratification. In that great document as submitted to the states there were no provisions for these rights of men.

But the people of the United States were not at all indefinite as to their wishes and interests. Only by assurance that the bill of rights would be included was it possible to obtain ratification of the Constitution.

The Ordinance of 1787 was now in effect. America had started westward under a law of highest hope and modern ideals.



INDIAN TREATY

Drawn by William R. Willison, Marietta, Ohio

Most of the humanitarian provisions of the Ordinance of 1787 became part of the United States Constitution in the first amendments made four years later—1791—and one of the greatest found its way into our organic law 78 years afterward, when slavery was abolished by the thirteenth amendment.

This is not, however, the whole story of the Ordinance of 1787 and “How this Nation?” As Abraham Lincoln later said,

“The Ordinance of 1787 was constantly looked to whenever a new Territory was to become a State. Congress always traced their course by that Ordinance.”

Every state constitution subsequently adopted as the nation marched across the continent to the Pacific Ocean reflected the influence of that great ordinance. Thus, the concepts of Americans, which perhaps were planted with the first colonists but which bore fruit in the Ordinance of 1787, determined the most cherished fundamentals of this nation today.

CHAPTER II

HISTORY OF THE ORDINANCE OF 1787

A century and a half ago, on the thirteenth day of July, 1787, the Congress of the United States, in session at New York, among its last acts under the Articles of Confederation, enacted an ordinance for the government of the territory of the United States northwest of the Ohio River. We know of no legislative enactment, proposed and accomplished in any country, in any age, by monarch, by representatives, or by the peoples themselves, that has received praise so exalted, and at the same time so richly deserved, as has this same Ordinance of 1787.

It has been lauded by our great statesmen, great jurists, great orators, and great educators.

In his notable speech in reply to Robert Young Hayne, delivered in the United States Senate in January, 1830, Daniel Webster said of it:

“We are accustomed to praise the law-givers of antiquity; we help to perpetuate the fame of Solon and Lycurgus; but I doubt whether one single law of any law-giver, ancient or modern, has produced effects of more distinct, marked, and lasting character than the Ordinance of 1787. We see its consequences at this moment, and we shall never cease to see them, perhaps, while the Ohio shall flow.”

Judge Timothy Walker, in an address delivered in 1837 at Cincinnati, spoke upon this subject in the following words:

“Upon the surpassing excellence of this ordinance no language of panegyric would be extravagant. It approaches as nearly to absolute perfection as anything to be found in the legislation of mankind; for after the experience of fifty years, it would perhaps be impossible to alter without marring it. In short, it is one of those matchless specimens of sagacious forecast which even the reckless spirit of innovation would not venture to assail. The emigrant knew beforehand that this was a land of the highest political, as well as national, promise, and, under the auspices of another Moses, he journeyed with confidence to his new Canaan.”

Chief Justice Salmon P. Chase said of it:

“Never, probably, in the history of the world, did a measure of legislation so accurately fulfill, and yet so mightily exceed, the anticipations of the legislators. The Ordinance has well been described as having been a pillar of cloud by day and of fire by night in the settlement and government of the Northwestern States.”

Peter Force, in 1847, in tracing its history, declared:

“It has been distinguished as one of the greatest monuments of civil jurisprudence.”

George V. N. Lothrop, LL.D., in an address delivered at the annual commencement of the University of Michigan, June 27, 1878, said substantially:

“In advance of the coming millions, it had, as it were, shaped the earth and the heavens of the sleeping empire. The Great Charter of the Northwest had consecrated it irrevocably to human freedom, to religion, learning, and free thought. This one act is the most dominant one in our whole history, since the landing of the Pilgrims. It is the act that became decisive in the Great Rebellion. Without it, so far as human judgment can discover, the victory of free labor would have been impossible.”

Notwithstanding the high praises that have been bestowed upon the ordinance, and the many and great benefits that have flowed from it, its authorship was, for nearly a century, a matter of dispute. No less than four different persons have had claims to authorship advanced for them by their friends.

Who, if any one man, was primarily the author of the ordinance, is uncertain, and now of little moment. The long contention which was waged as to its authorship serves its greatest purpose in emphasizing the importance which was then and has since been attributed to the document.

Because of the geographic implications later involved it is worth while, however, to consider briefly the various assertions of authorship.

Webster, in his famous two-day speech in reply to Hayne, gives to Nathan Dane, of Massachusetts, the entire credit for devising the ordinance,

and such was the confidence in Webster's statement, that many writers since have accepted it as a demonstrated fact.

Thomas H. Benton, in the debate following Webster's speech, replied:

"He [Webster] has brought before us a certain Nathan Dane, of Beverly, Mass., and loaded him with such an exuberance of blushing honors as no modern name has been known to merit or claim. So much glory was caused by a single act, and that act the supposed authorship of the Ordinance of 1787, and especially the clause in it which prohibits slavery and involuntary servitude. So much encomium and such greatful consequences it seems a pity to spoil, but spoilt it must be; for Mr. Dane was no more the author of that Ordinance, sir, than you or I.... That Ordinance, and especially the non-slavery clause, was not the work of Nathan Dane of Massachusetts, but of Thomas Jefferson of Virginia."

Charles King, president of Columbia College, in 1855 published a paper on the Northwest Territory in which he claimed for his father, Rufus King, the authorship of the non-slavery clause.

Ex-Governor Edward Coles, in a paper on the "History of the Ordinance of 1787," prepared for the Pennsylvania Historical Society in 1850, disputed Webster's claim for Dane, and asserted the claim of Thomas Jefferson.

Force undertook to gather from the archives of Congress materials for a complete history of this document, but he found nothing that settled the question of authorship; and although he probably knew more of the original documents pertaining to the Northwest Territory than any other man since its adoption, he died in ignorance of the real author.

Hon. R. W. Thompson, in an eloquent address on "Education," ascribed the ordinance to the wise statesmanship and the unselfish and far-reaching patriotism of Jefferson.

Lothrop, in his Ann Arbor address in 1878, on "Education as a Public Duty," said:

"It was a graduate of Harvard, who, in 1787, when framing the Great Charter for the Northwest, had consecrated it irrevocably to Human Freedom, to Religion, Learning, and Free Thought. It was the proud boast of Themistocles, that he knew how to make of a small city a great state.

Greater than his was the wisdom and prescience of Nathan Dane, who knew how to take pledges of the future, and to snatch from the wilderness an inviolable Republic of Free Labor and Free Thought.”

In 1876, a year in which many buried historical facts were unearthed, William Frederick Poole, in an admirable article published in the *North American Review*, presented the history of the Ordinance in a most scholarly manner. But discarding the absoluteness of the claims heretofore set forth, he presents, as the chief actor in this mysterious drama, Dr. Manasseh Cutler, of Massachusetts.

Following, in a general way, the line of argument laid down by Poole, it is interesting to examine the foregoing claims in the light of the known facts. In January, 1781, Thomas Jefferson, then Governor of Virginia, acting under instructions from his state, ceded to the general government Virginia's claims to that magnificent tract of country known as the Northwest Territory, which had been acquired by Virginia by king's charter and also as a result of its conquest by George Rogers Clark in 1778-79. The Virginia cession, regarded as the most crucial of the necessary relinquishments of state claims, was not completed in form satisfactory to the United States until 1784. On the first of March of the same year Jefferson, then a member of Congress and chairman of a committee appointed for the purpose, presented an ordinance for the government of all the territory lying westward of the 13 original states to the Mississippi River. There were two notable features in this paper; first, it provided for the exclusion of slavery and involuntary servitude *after the year 1800*; second, it provided for *Articles of Compact*, the non-slavery clause being one of them. By this provision there were five articles that could never be set aside without the consent of both Congress and the people of the territory. The non-slavery article was rejected by Congress, and the rest was adopted with some unimportant modifications, on the twenty-third of April, 1784. Whether even this ordinance was actually drafted by Jefferson is disputed, because it was an almost identical copy of the plan submitted by David Howell of Rhode Island in the previous year. However, on the tenth of May, 17 days after the Ordinance of 1784 was adopted, Jefferson resigned his seat in Congress to assume the duties of United States Minister to France. As the Ordinance of 1787 was not adopted until three years after Jefferson had gone to France, and since he did not return until December,

1789, more than two years after its passage, there is serious question as to his possible influence upon it.

Moreover, careful comparison of the Ordinance of 1784 with that of 1787, shows no similarity, except in the two points referred to above: the anti-slavery provision, and the articles of compact. The Ordinance of 1784 contains none of those broad provisions found in the later document concerning religious freedom, fostering of education, equal distribution of estates of intestates, the privilege of the writ of habeas corpus, trial by jury, moderation in fines and punishments, the taking of private property for public use, and interference by law with the obligation of private contracts. No provision was made for distribution or sale of lands, and under this Ordinance of 1784 no settlements were ever made in the territory.



MANASSEH CUTLER

Drawn by Marie Kellogg, Superior, Wisconsin

In 1785, on motion of Rufus King, an attempt was made to re-insert some sort of anti-slavery provision, but it was not carried. This, so far as we can learn, is the extent of the grounds for King's claims to authorship.

In March, 1786, a report on the western territory was made by the grand committee of the House, which, proving unsatisfactory, resulted in the appointment of a new committee. It reported an ordinance that was recommitted and discussed at intervals until September of the same year, when another committee was appointed. Of this, Dane was a member. A report was made which was under discussion for several months. In April, 1787, this same committee reported another ordinance which passed its first and second readings, and the tenth of May was set for its third reading, but for some reason final action was postponed. This paper came down to the ninth of July without further change. Poole has given us the full text as it appeared only four days before the final passage of the great ordinance. This bears less likeness to the finally adopted version than does the Ordinance of 1784.

Force, in gathering up the old papers, found this July 9 version in its crude and unstatesmanlike condition, and wondered how such radical changes could have been so suddenly effected; for in the brief space of four days the new ordinance was drafted, passed its three readings, was put upon its final passage, and was adopted by the unanimous vote of all the states present.

This rapid and fundamental change in the ordinance tends to discredit all of the foregoing claims.

Authorship of public documents which attain greatness is usually a matter for later dispute.

Such documents have probably never been the work of any one author, but are rather the coordinated expressions of thought which have developed over long periods of time and in many men's minds. Least of all entitled to credit is the "Scribe" who merely recorded the thought propounded by others, but whose name often becomes associated with the document.

At the close of the Revolutionary War, Congress, in adjusting the claims of officers and soldiers, gave them interest-bearing continental certificates. The United States Treasury was in a state of such depletion and uncertainty, that these certificates were actually worth only about one-sixth of their face value. At the close of the war many of these officers were destitute, notwithstanding the fact that they held thousands of dollars in these depreciated "promissory notes" of the government.

On the eve of the disbandment of the army in 1783, 288 officers petitioned Congress for a grant of land in the western territory. Their petition went beyond a request for lands, however, and set forth certain provisions of government as essential to their petition. In this humble and little-known document known variously as the "Pickering" or "Army" Plan, were contained many of the proposals which later found their way into the Ordinance of 1787. Included for instance was the then radical prohibition of slavery clause. This document bears a closer resemblance in principles and in wording, to the Ordinance of 1787 when it was adopted than does any other contemporary document. Among the petitioners was General Rufus Putnam. It was his plan, if Congress should comply with the petition, to form a colony and remove to the Ohio Valley. On the sixteenth of June, 1783, Putnam addressed a letter to General George Washington elaborating the soldiers' plan and setting forth the advantages that would arise if Congress should grant the petition, and urged him to use his influence to secure favorable action upon it. This letter is of great interest in the development of the history of the Northwest. It is printed in full in Charles M. Walker's *History of Athens County, Ohio*, pp. 30-36.

The chief advantages of this project, as set forth by Putnam were, the friendship of the Indians, secured through traffic with them; the protection of the frontier; the promotion of land sales to other than soldiers, thus aiding the treasury; and the prevention of the return of said territory to any European power. There were, in the letter, other suggestions of far-reaching interest; (1) That the territory should be surveyed into six-mile townships, one of the first suggestions for our present admirable system of government surveys; (2) that in the proposed grant, a portion of land should be set apart for the support of the ministry; and (3) that another portion should be reserved for the maintenance of free schools.

One year later Washington wrote to Putnam that, although he had urged upon Congress the necessity and the duty of complying with the petition, no action had been taken. The failure of this plan led to the development of another and better one. It is interesting to note, however, that the men under whose sponsorship and virtual insistence the Ordinance of 1787 was finally evolved had been subscribers to the Pickering Plan of 1783.

In 1785, Congress adopted the system of surveys suggested by Putnam, and tendered him the office of Government Surveyor. He declined, but

through his influence, his friend and fellow-soldier, General Benjamin Tupper, was appointed. In the fall of 1785, and again in 1786, Tupper visited the territory and in the latter year he completed the survey of the "seven ranges" in eastern Ohio. In the winter of 1785-86 he held a conference with Putnam at the home of the latter, in Rutland, Massachusetts. Here they talked over the beauty and value of "the Ohio country" and devised a new plan for "filling it with inhabitants." They issued a call to all officers, soldiers, and others, "who desire to become adventurers in that delightful region" to meet in convention for the purpose of organizing "an association by the name of *The Ohio Company of Associates*." The term "Ohio" as used here related to the "Ohio country" or the "Territory north and west of the River Ohio," as the present state of Ohio was then of course non-existent.

Also the name, "Ohio Company of Associates," is not to be confused with the earlier "Ohio Company" of the 1750's which had been one of the earlier land schemes, operating south of the Ohio River. No man in the "Ohio Company of Associates" had been a part of the former Ohio Company, and there was no relation between the two companies.

Delegates from various New England counties met at Boston, March 1, 1786. A committee, consisting of Putnam, Cutler, Colonel John Brooks, Major Winthrop Sargent, and Captain Thomas H. Cushing was appointed to draft a plan of association. Two days later they made a report, some of the most important points of which were: (1) That a stock company should be formed with a capital of one million dollars of the Continental Certificates already mentioned; (2) that this fund should be devoted to the purchase of lands northwest of the River Ohio; (3) that each share should consist of one thousand dollars of certificates, and ten dollars of gold or silver to be used in defraying expenses; (4) that directors and agents be appointed to carry out the purposes of the company.

Subscription books were opened at different places, and at the end of the year, a sufficient number of shares had been subscribed to justify further proceedings. On the eighth of March, 1787, another meeting was held in Boston, and General Samuel Holden Parsons, Putnam, Cutler and General James M. Varnum were appointed directors, and were ordered to make proposals to Congress for the purchase of lands in accordance with the plans of the company. Later, the directors employed Cutler to act as their

agent and make a contract with Congress for a body of land in the “Great Western Territory of the Union.”

To those who have studied this transaction of the Ohio Company of Associates in its various bearings, there can be no doubt that through it the Ordinance of 1787 came to be. The two were intimately related parts of one whole. Either studied alone presents inexplicable difficulties; studied together each explains the other. Through the agency of Cutler the purchase of land was effected and those radical changes in the ordinance were made between the ninth and thirteenth of July, 1787.

Cutler was born at Killingly, Connecticut, May 3, 1742. At the age of twenty-three he graduated from Yale. The two years following were devoted to the whaling business and to storekeeping at Edgartown, on Martha's Vineyard. He did not enjoy this occupation, however, and studied law in his spare time. In 1767 he was admitted to the Massachusetts bar. This profession proved little more congenial, and he determined to study theology. In 1771 he was ordained at Ipswich, where he continued preaching until the outbreak of the Revolution, when he entered the army as a chaplain. In one engagement he took such an active and gallant part that the colonel of his regiment presented him with a fine horse captured from the enemy. Cutler returned to his parish before the war closed and decided to study medicine. He received his M.D. degree, and for several years served in the double capacity of minister and doctor. He was now a graduate in all the so-called learned professions—law, divinity, and medicine. In scientific pursuits he was probably the equal of any man in America, excepting Benjamin Franklin, and perhaps Benjamin Rush. He was a member of the American Academy of Arts and Sciences, and several other learned bodies. Two years before his journey to New York, he had published four articles in the memoirs of the American Academy, dealing with astronomy, meteorology and botany. The last mentioned was the first attempt made by any one to describe scientifically the plants of New England. Employing the Linnaean system, he classified 350 species of plants found in his neighborhood. His articles brought him prominence among learned groups throughout the country, and secured for him a cordial welcome into the literary and scientific circles of New York and Philadelphia. Cutler was well fitted, therefore, to become, as has already been related, a leading spirit in the enterprise of the Ohio Company. In 1795

Washington offered him the judgeship of the Supreme Court of the Northwest Territory, which he declined. He became a member of the Massachusetts Legislature, and from 1800 to 1804 served his district as its Representative in Congress. He declined re-election and returned to his pastorate. At the time of his death in 1820 he had served there for nearly 50 years.

He was a man of commanding presence, “stately and elegant in form, courtly in manners, and at the same time easy, affable, and communicative. He was given to relating anecdotes and making himself agreeable.” His character, attainments, manners and knowledge of men fitted him admirably for the task of uniting the diverse elements of Congress to promote the scheme he was sent there to represent. How he accomplished this is an interesting story.

Cutler’s diary reveals that he left his home in Ipswich, 25 miles northwest of Boston, on Sunday, June 24, 1787. He preached that day in Lynn, and spent the night at Cambridge. He also stopped at Middletown to confer with Parsons. Here the plan of operations was perfected, and he pursued his journey, arriving at New York on the afternoon of July 5, 1787. He had armed himself with about 50 letters of introduction. One of these he delivered immediately to a well-to-do merchant of the city, who received him very cordially and insisted that Cutler stay with him as long as he remained in the city.

The next morning Cutler was on the floor of Congress early, presenting letters of introduction to the members. He was particularly anxious to become acquainted with southern men, and they received him with much warmth and politeness. He was so genteel in his manners, and so much more like a southerner than a New England clergyman, that they took a fancy to him at once.

During the morning he prepared his applications to Congress for the proposed purchase of western land for the Ohio Company. He was introduced to the House by Colonel Edward Carrington, after which he delivered his petition, and proposed terms of the purchase. A committee was appointed to discuss terms of negotiation.

It must be remembered that Cutler was employed not only to make a purchase of land, but to see that the frame of government for the territory

was acceptable to his constituents. Thus he had a motive in making himself agreeable to the southern men. Among the New England members there existed some antagonism toward the Ohio Company's scheme, since its success would cause many enterprising citizens to leave that section. Massachusetts had a large tract of land in Maine, and she desired to turn the tide of emigration in that direction; for this reason Massachusetts members stood in the way of the western movement. Cutler felt, however, that their support of the company's scheme might be relied upon when brought to a test.

Cutler was invited to dinners and teas, where his engaging manner made him the center of attraction. He used every occasion as a means of setting before the members the great advantages that would follow consummation of the proposed plan.

In the first place, Congress could thus pay a large amount of the national debt to its most worthy creditors without money. Again, it would open up the Northwest to settlement, thus insuring large sales of land to civilians. Further, it would establish a barrier between older settlements and the western Indians, thus furnishing protection without expense to the government.

In three or four days he had so fully succeeded in enlisting the favor of Congress that by July 9 a new committee was appointed to prepare a frame of government for the territory. It was at this point that the ordinance under consideration bore so little resemblance to the final document which was adopted four days later. This committee was composed of Carrington, Nathan Dane of Massachusetts, Richard Henry Lee and two others. It is quite probable that the members of this committee were selected in accordance with Cutler's wishes.

The next morning after the committee was appointed, it called Cutler into its councils, having previously sent him a copy of the ordinance, which had already passed two readings. He was asked to make suggestions and propose amendments, which he did, returning the paper to the committee with his suggestions.

On July 10, he left for Philadelphia to visit his scientific correspondents, Franklin and Rush, and also to look in upon the Constitutional Convention, which was then in session.

The day following his departure, the committee presented to Congress a new ordinance prepared in accordance with Cutler's suggestions. If Force could have had access to Cutler's diary in writing up the history of the Ordinance of 1787, the mystery of the radical changes that he found between the ninth and the eleventh of July would have been solved.

On the eighteenth Cutler was again in New York. On the nineteenth he made this entry in his diary:

"Called on members of Congress very early in the morning, and was furnished with the ordinance establishing a government in the western Federal territory. It is, in a degree, new modeled. The amendments I proposed have all been made except one, and that is better qualified."

The frame of government having been satisfactorily settled, Congress proceeded to state the conditions on which the sale of lands should be based. On the twentieth these terms were shown to Cutler, who rejected them. He said:

"I informed the committee that I should not contract on the terms proposed; that I should greatly prefer purchasing lands from some of the states, who would give incomparably better terms; and therefore proposed to leave the city immediately."

Thus it appears quite certain that the distinctive flavor of the ordinance and the provisions which have given it greatness among all the credos of mankind were injected into it after July 9, and after Cutler had been requested to make suggestions and amendments.

But that these vital changes were not original with Cutler is evidenced by his later statement, "I only represented my principals, who would accept nothing less."

And so the real responsibility for authorship of the ordinance may be traced to the men at the Bunch of Grapes Tavern, to the signers of the Pickering Plan, to the sober-minded and unsung men who had fought and thought a new nation into potential greatness.

At this time a number of other leading persons who held government certificates proposed to make Cutler their agent for the purchase of lands for themselves. This would give him control of some four millions more of the debt with which to influence Congress. He agreed to act for them, on

the condition that the affair be conducted secretly. The next day several members called on him. They found him unwilling to accept their conditions, and proposing to leave immediately. They assured him that Congress was disposed to give him better terms. He appeared very indifferent, and they became more and more anxious. His ruse was working admirably. He finally told them that if Congress would accede to his terms, he would extend his proposed purchase. In this way, Congress could pay more than four millions of the public debt. He explained that the intention of his company was an immediate settlement by the most robust and industrious people in America, which would instantly enhance the value of federal lands. He proposed to renew the negotiations on his own terms, if Congress was so disposed.

On the twenty-fourth he wrote out his terms and sent them to the Board of Treasury, which had been empowered to complete the contract. These terms specified that the general government should survey the tract at its expense, stated the method of payment, number of payments, and the time at which the deed should be given. The most striking provisions of the contract set apart the sixteenth section of each township for the support of free schools, the twenty-ninth section of each township for the ministry; and two entire townships for the establishment and maintenance of a university.

These terms called forth much opposition, and taxed Cutler's lobbying powers to their utmost. He said:

"Every machine in the city that it was possible to set to work, we now set in motion. My friends made every exertion in private conversation to bring over my opponents. In order to get at some of them so as to work powerfully on their minds, we were obliged to engage three or four persons before we could get at them. In some instances we engaged one person, who engaged a second, and he a third, and soon to the fourth before we could effect our purpose. In these maneuvers I am much beholden to Col. Duer and Maj. Sargent."

It had been the purpose of the company to secure the governorship of the new territory for Parsons, but it became known that General Arthur St. Clair, the president of the Continental Congress, wanted the position. St. Clair was withholding his influence. Cutler sought an interview with him. "After that," said Cutler, "our matters went on much better." It will be

remembered that St. Clair became the first Governor of the Northwest Territory.

On the twenty-seventh, Congress directed the Board of Treasury “to take order and close the contract.” That evening Cutler left New York for his home, authorizing Sargent to act in his stead. On the twenty-ninth of August he made a report to the directors and agents at a meeting in Boston. A great number of proprietors attended, and all fully approved of the proposed contract and it was finally executed October 27, 1787.

The Ordinance of 1787 undoubtedly represented the most advanced thought of that time on the subject of free government.

This ordinance irrevocably fixed the character of the immigration, and determined the social, political, industrial, educational, and religious institutions of the territory.

As soon as it was adopted by Congress, it was sent to the Constitutional Convention at Philadelphia, and some of its most important provisions were embodied in the new Constitution. Notable among these was one in the second Article of Compact, in the ordinance, stating that, “for the just preservation of rights and property, no law ought ever to be made, or have force in said Territory, that shall, in any manner whatever, interfere with, or affect private contracts or engagements, bona fide, and without fraud, previously formed.” This appears in Paragraph 1, Section 10, Article 1 of the Constitution, prohibiting a state from passing any “law impairing the obligation of contracts.” This is said to be the first enactment of the kind in the history of constitutional law.

The fact that the Constitutional Convention included this one proviso in the draft of the Constitution, indicates that consideration was given the provisions of the ordinance, and thereby suggests their deliberate omission from the Constitution, for reasons unknown, inasmuch as the debates of that convention were, by agreement, not recorded.

However, after the Constitution was submitted to the states for ratification it quickly became apparent that the people were determined upon specific provision for the rights of men in their fundamental law, and while ratification of the Constitution by nine states was accomplished in

1789, it was only possible by assurance that such provisions would be immediately added as amendments.

In some form, every one of the states admitted from the Northwest Territory later embodied similar provisions in their fundamental law. The adoption or rejection of these principles was not left to the discretion of the states; being “Articles of Compact,” they could not be discarded without the consent of Congress.

The sixth article of this compact prohibited slavery forever, within the bounds of the Northwest Territory. But for this form of compact in the ordinance, it is perhaps possible that Indiana and Illinois would have entered the Union as slave states. In 1802 General William Henry Harrison, then Governor of Indiana Territory, called a convention of delegates to consider the means by which slavery could be introduced into the territory, and he himself presided over its deliberations. In the language of Poole,

“The Convention voted to give its consent to the suspension of the sixth article of the compact, and to memorialize Congress for its consent to the same. The memorial laid before Congress stated that the suspension of the sixth article would be highly ‘advantageous to the Territory’ and ‘would meet with the approbation of at least nine-tenths of the good citizens of the same.’ The subject was referred to a committee of which John Randolph of Virginia was chairman, who reported adversely as follows: ‘That the rapidly increasing population of the State of Ohio evinces in the opinion of your committee, that the labor of slaves is not necessary to promote the growth and settlement of colonies in that region. That this labor, demonstrably the dearest of any, can only be employed to advantage in the cultivation of products more valuable than any known in that quarter of the United States; that the committee deem it highly dangerous and inexpedient to impair a provision wisely calculated to promote the happiness and prosperity of the northwestern country, and to give strength and security to that extensive frontier. In the salutary operation of this sagacious and salutary restraint, it is believed that the inhabitants of the Territory will, at no very distant day, find ample remuneration for a temporary privation of labor and of emigration.’”

When Ohio was admitted to the Union, the advocates of slavery made strenuous efforts to secure its introduction, but were defeated. Indiana and

Illinois territories later asked that the anti-slavery provision be set aside. More than one committee reported in favor of repealing it, but Congress firmly maintained the compact.

The enlightened provisions of the ordinance attracted the thrifty Yankee from New England, the enterprising Dutchman from Pennsylvania, the conscientious Quaker from Carolina and Virginia, and some of the sturdiest pioneer stock from the frontier of Kentucky. Even the light-hearted French contributed to this great melting pot.

Some historians refer to the spirit of the Northwest Territory as the “first American civilization,” brought about by welding into a national entity the diverse and imported civilizations of the earlier colonies.



Northwest Territory

The FIRST COLONY of the UNITED STATES

It is at least an interesting speculation as to whether the newly born United States would have prevailed as one nation, except for the opportunity given by the Northwest Territory with its new lands, common

problems, and forward looking government for this merging of the older states' discordant traditional concepts of government and social relations.

Comparison of the social, industrial, and educational conditions in the states of the Old Northwest with those in neighboring states not born under the influence of the ordinance creates further evidence of the value of the principles enunciated by the ordinance.

If, in 1861, the principles and institutions of Kentucky and Missouri, instead of those of the Ordinance of 1787, had prevailed in the five states formed from the Northwest Territory, it would have required no seer to predict another end for the great struggle between the states. As Lothrop says, "It [the Ordinance of 1787] is the act that became decisive in the Great Rebellion. Without it so far as human judgment can discover, the victory of Free Labor would have been impossible."

While it is not claimed that the ordinance was the source of all the blessings that have crowned these states, still it is certain that it was the germ from which many of them have been developed. Neither is it claimed that all the ills of the Southern States arose from the absence of similar provisions; however, their presence and influence on the one hand, and their absence on the other, tended to widen the gulf between North and South and, when the final struggle came, had a determining influence on the result.

CHAPTER III

THE FIRST SETTLEMENT IN THE NORTHWEST TERRITORY UNDER THE ORDINANCE OF 1787

When George Washington said farewell to his officers at the end of the Revolutionary War, he gave them this admonition:

“The extensive and fertile regions of the West will yield a most happy asylum to those who, fond of domestic enjoyment, are seeking for personal independence.”

While Washington did not become a shareholder in the Ohio Company of Associates, several circumstances give evidence as to his having been active in its planning.

Having personally visited the Ohio country in 1770 for the purpose of studying and selecting lands, his selection of some 40,000 acres in Virginia and Ohio for himself; and the comments in his journal of the trip give ample evidence of his enthusiasm for this part of the West. His repeated statement during the Revolution that in case of failure to achieve independence the troops should “retire to the Ohio Country and there be free”; his long and earnest efforts to open up routes to the West by canal and by road; his great friendship and admiration for Rufus Putnam; and his later decisive steps in sending Anthony Wayne to put a final end to the question of Indian land titles and warfare; all these indicate far more than a casual interest in the plans for and success of this first western colony.

Washington had himself earlier attempted to establish a colony on the Great Kanawha River south of the present town of Point Pleasant, West Virginia. We can readily imagine that he may have deliberately refrained from becoming an Ohio Company Associate because of the implications of personal interest which might follow. But when, on April 7, 1788, a group of his former officers made the first settlement in the Northwest Territory, at Marietta, Washington exclaimed:

“No colony in America was ever settled under such favorable auspices as that which has just commenced on the banks of the Muskingum. Information, property, and strength will be its characteristics. I know many of the settlers personally, and there never were men better calculated to promote the welfare of such a community.”

The founders of Marietta settled in the West to regain the fortunes they had lost in the Revolution. Some of them earned nothing from their professions during the eight years of the war. They received little or no pay for their military services, because Congress had no power to raise money by levying taxes. Finally, they were paid with certificates issued by the Continental Congress. Because these notes were worth only about twelve cents on the dollar the expression, “not worth a Continental,” became a by-word. In desperation the officers looked to the public land of the West with its fertility, timber, fur, and game as a place to find the necessities of life. They were not speculators; they were pioneers in search of homes for themselves and their children.

Several unsuccessful attempts had been made by the soldiers to secure land in the West before Congress finally granted them a place to settle. As early as September, 1776, Congress tried to encourage enlistment by offering bounties of land—five hundred acres to a colonel, 100 acres to a private, and other ranks in proportion. At the time this offer was made, the government owned no public land, nor did it until the winning of the Northwest by George Rogers Clark, the cession of land claims by the states, and Indian treaties had provided a public domain. In hope of securing grants in this presumed domain Colonel Timothy Pickering in 1783 formulated “Propositions for Settling a New State by Such Officers and Soldiers of the Federal Army as Shall Associate for that Purpose.” He suggested that Congress purchase lands from the Indians and give tracts to soldiers in fulfillment of the bounty promises of 1776. In the hands of Putnam this suggestion became the “Newburgh Petition,” which was forwarded to Congress with the signatures of about 288 officers in the Continental Line of the Army. With this petition Putnam sent a letter to Washington in which he asked support for the appeal of the signers and outlined their plan. His letter included such wise suggestions as the exchange of land for public securities, the adoption of the township system of survey, and the advantage of settlements of soldiers in the West as outposts against danger from the

Indians or from the English in Canada. In a belated response to these demands Congress enacted on May 20, 1785, "An Ordinance for ascertaining the mode of disposing of lands in the Western Territory," which applied to the lands won from England, ceded by the states and now purchased from the Indians. This ordinance made no provision for government in the West, and, although the "seven ranges" just west of the Pennsylvania border were surveyed and offered for sale according to its provisions, but little land was sold and this attempt at westward settlement was a comparative failure.

This further reflects the determination of the American people to have an acceptable and agreed-upon form of government upon which to build a new country.



RUFUS PUTNAM

Drawn by Herbert Krofft, Zanesville, Ohio

In these efforts of the officers to secure western lands, Putnam was the leader. Putnam had been well taught in the school of experience. After his father's death, he had gone, at the age of nine, to live with his stepfather,

who made him work hard and would not permit him to go to school. "For six years," Putnam said, "I was made a ridecule of, and otherwise abused for my attention to books, and attempting to write and learn Arethmatic." At the age of 16 he was bound as apprentice to a millwright. Three years later he decided to escape from the severity of his master and seek adventure by joining the English army in the French and Indian War. He returned home from his second enlistment in disgust, because he had been made to work in the mills when he wanted to fight the French and Indians. After working seven years as a millwright, he turned to farming and surveying. Soon after the outbreak of the Revolution he was appointed military engineer. Later in the war he constructed the fortifications at West Point and suggested that place for a military school. He retired from the army a brigadier general and returned to farming and surveying. Putnam was appointed by Congress surveyor on the seven ranges of townships provided for by the Land Ordinance of 1785; but he resigned to survey lands in Maine for his own state and recommended Brigadier General Benjamin Tupper for the position in Ohio.

Tupper was so closely associated with Putnam in western plans that the two men have been called twin brothers. It has been suggested that the two men deliberately investigated land available for purchase in two different regions to compare their advantages. Tupper was stopped at Pittsburgh by Indian trouble, but he heard favorable reports of the Ohio country, which made him enthusiastic for settlement. He hurried eastward and arrived at Rutland on January 9, 1786. Before the blazing fireplace in Putnam's home the two men talked all night about their dream of settlement in the West. When the morning light gleamed through the windows of the kitchen, the ineffectual hopes of the army officers had been forged into a practical plan of action by the enthusiasm of Putnam and Tupper. On January 25, 1786, Massachusetts newspapers published an invitation to officers and others interested in western settlement to meet in their respective counties and appoint delegates to convene at the Bunch of Grapes Tavern in Boston to form an organization for the purpose.

Although this call was sent out three years after the Newburgh Petition, the prompt response of the officers showed that there had been no decline in interest. The Ohio Company of Associates resulted from this meeting.

It has been pointed out that most of those attending were also members of the military Society of the Cincinnati, so named because the Revolutionary soldiers thought they resembled the Roman soldier Cincinnatus in leaving their farms and work to save their country. No doubt the hope of western migration had been kept alive by discussion at the meetings of the Cincinnati. Most of those men also belonged to the Masonic Lodge, and this association also unified and perpetuated the ideas included in the Newburgh Petition of which most of them had been signers.

At the meeting in Boston on March 1 the delegates elected Putnam chairman and Major Winthrop Sargent clerk. One thousand "shares" were planned, and no person was permitted to hold more than five shares or less than one share, except that several persons could own one share in partnership. To facilitate the transaction of business, one agent was elected by each group of 20 shares to represent their interest at meetings of the company. Putnam, Manasseh Cutler, and General Samuel Holden Parsons, were appointed directors to manage the affairs of the company. Sargent was elected secretary and later General James M. Varnum was made a director and Colonel Richard Platt treasurer. All land was to be divided equally among the shares by lot. One year after the organization of the company 25 shares had been subscribed, and Parsons, Putnam, and Cutler were appointed to purchase a tract of land from Congress.

Although largely responsible for shaping the beginning of the new colony, Cutler did not move to the tract he purchased; he later visited the infant settlement, however, and his sons, Ephraim, Jervis, and Charles, became pioneer residents of the Northwest Territory.

Cutler contracted to purchase for the Ohio Company a million and a half acres at one dollar per acre, less one third of a dollar for bad lands and the expenses of surveying. Because the public securities with which payment was to be made were worth only twelve cents on the dollar, the actual purchase price was eight or nine cents per acre. The tract was bounded on the east by the Seven Ranges, which had been surveyed and offered for sale under the Land Ordinance of 1785, on the south by the Ohio River, and on the western side by the seventeenth Range; it extended far enough north to include in addition to the purchase one section of 640 acres in each township for the support of religion, one section for the support of schools, two entire townships for a university, and three sections for the future

disposition of Congress. An interesting phase of this provision of the contract with the government was that the Ordinance of 1787 itself made no specific provision for public school lands, lands for support of religion, or for university purposes. The Land Ordinance of 1785 had provided for the setting aside of one section in each township for public schools, but for neither religion nor universities. But, so earnest of purpose were the men who had written into the Ordinance of 1787 "Religion, morality and knowledge, being necessary to good government and the happiness of mankind, schools and the means of education shall be forever encouraged," that in their bargaining with the land commissioners, insistence was made upon these specific reservations. And so, perhaps outside the formal tenets of law, was furthered a public land policy which has done much to make our public school and university educational system an integral and distinctive feature of this government.

Five hundred thousand dollars was to be paid when the contract was signed and the same amount when the United States completed the survey of the boundary lines of the tract. The contract was signed on October 27, 1787, by Cutler and Sargent for the Ohio Company, and by Samuel Osgood and Arthur Lee for the Treasury Board, as commissioners of public lands. Because the company could not pay the second installment when it was due, the tract was reduced in size from a million and a half acres to 1,064,285 acres when the patent was issued on May 20, 1792. By giving 100,000 acres for donation lands to actual settlers, Congress reduced the final purchase to 964,285 acres.

In conformity with the Articles of Association the shareholders received equal divisions of the purchase. Instead of the 1000 shares originally expected, 822 were subscribed. When the final apportionment was made, each share received a total of 1,173.37 acres in seven allotments of eight acres, three acres, a house lot of .37 acres, 160 acres, 100 acres, a 640 acre section, and 262 acres.

Had army pay certificates been worth par, the maximum holding for any individual would have been about \$5900, and from that amount down to a fractional part of \$1173. In such sized holdings there could be little suggestion of either speculation or monopoly. The army certificates being depreciated in value as they were, the real value of holdings, in hard money,

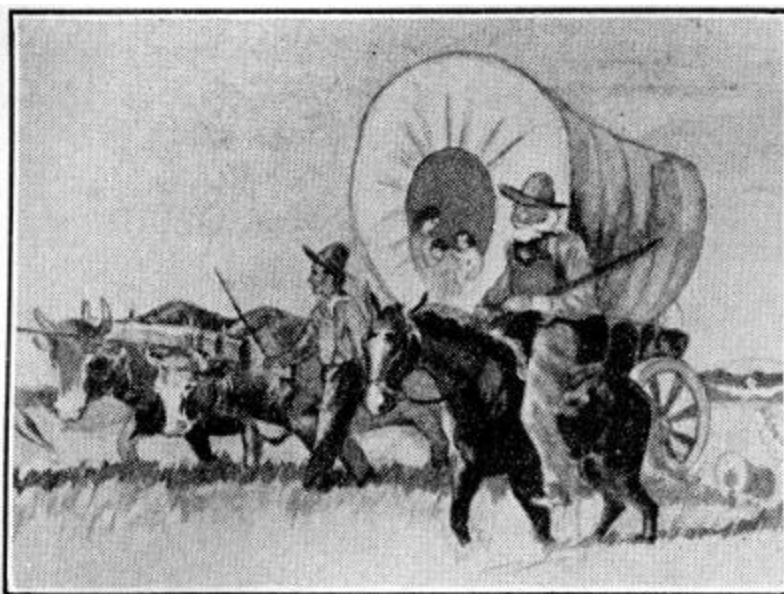
varied from about \$700 down to a few dollars. On such vast capital was America started across a continent!!

The Ohio Company purchase was located on the Muskingum River for several reasons. Since the Associates of this Company expected to engage in farming, and since they were the first settlers, many have wondered why they did not choose a level tract rather than the hilly section of the Muskingum. The answers are several: Although they were the first settlers, they did not have first choice. Southern Ohio was the only part of the territory to which the United States could give clear title. Connecticut withheld her Western Reserve of three and a quarter million acres east of the Fort McIntosh Treaty line. The western land lying between the Scioto and Little Miami Rivers was under Virginia option. Since a location west of the Little Miami would have been too far from the settled part of the country, a tract of suitable size for the Ohio Company could be found only in the southeast part of the present state of Ohio. The southern location just west of the Seven Ranges was closer to New England and was on the then greatest thoroughfare of western travel, the Ohio River. Furthermore, the Muskingum region was as far distant as possible from the Indian settlements farther west. Another advantage was the protection afforded by Fort Harmar, which had been constructed in 1785 by United States troops under command of Major John Doughty for the purpose of stopping illegal occupation of the land. Also, the settlers would have as neighbors 13 families on the patent of Isaac Williams, which lay on the Virginia side of the Ohio, opposite the mouth of the Muskingum. In making his choice of location, Cutler considered all these factors as well as the advice of Thomas Hutchins, geographer of the United States, who told him that the Muskingum Valley was, in his opinion, "the best part of the whole of the western country."

As soon as the purchase was assured, the Ohio Company started systematic preparation for settlement. Putnam was elected superintendent. Plans were made in Boston for a city of 4000 acres with wide streets and public parks at the mouth of the Muskingum. One hundred houses were to be constructed on three sides of a square for the reception of settlers. For making surveys and preparing for immigrants, the superintendent was ordered to employ four surveyors and 22 assistants, six boat builders, four house carpenters, one blacksmith, and nine laborers. Each man was required

to furnish himself with rifle, bayonet, six flints, powder horn and pouch, half a pound of powder, one pound of balls, and one pound of buckshot. Surveyors were to receive \$27 a month, and laborers \$4 per month and board. Although these plans were made when it was midwinter and travel was difficult, no time was to be lost. These were men of action. They had waited over three years for Congress to make it possible to carry out their purposes. Putnam decided to lead an advance expedition to the Muskingum to be ready for surveying and building and planting early in the spring, and in *five weeks* after the land contract was signed, they were on their way.

There is a substantial lesson in this for us who today profess heartfelt desires and intensities of purpose. Ahead of these men lay months of winter, severe enough in the settled communities but far more to be feared in the hazardous wilderness of the Alleghany Mountains. Travel by foot, for 800 miles with a plodding ox team for part of their baggage, over the roughest of roads and uncharted trails, and across swollen streams was to be their lot. So severe was the risk that no women could accompany the party. During the trip and at its end possible Indian attacks endangered them. Such was their prospect which they faced cheerfully, unflinchingly and enthusiastically.



PIONEER PARTY

Drawn by Betty Kimmell, Vincennes, Ind.

The company of 48 men was divided into two parties. The boat builders and their assistants, 22 in number, met at Cutler's home in Ipswich, Massachusetts, on December 3, 1787. Cutler not only helped to fashion the government for the Ohio Company of Associates; he also provided for their migration a wagon covered with black canvas and lettered with his own handwriting "For the Ohio Country." At dawn the men paraded to hear an address from Cutler, fired three volleys with their rifles, and went to Danvers, Massachusetts, where Major Haffield White assumed command. With their plodding ox team they took a route south and then southwest over stage coach roads, mountain trails, or cutting their own path as they went, to the old Glade Road westward through Pennsylvania. After a toilsome journey, they reached Sumrill's Ferry on the Youghiogheny River 30 miles southeast of Pittsburgh on January 23, nearly eight weeks after leaving home. At this place (now West Newton, Pa.) they started to build boats in readiness for the arrival of the other party.

Putnam assembled the second party of 26 surveyors and assistants at Hartford, Connecticut, on January 1, 1788. But business at the war office in New York required him to send the party ahead under the leadership of Colonel Ebenezer Sproat and rejoin them at Swatara Creek between present Harrisburg and Lebanon, Pennsylvania. When Putnam arrived, progress was delayed because the ice on the creeks would not support wagons. With the courage and energy developed by long military service, Putnam set the men to work cutting an opening so that the stream could be forded. During the day spent in cutting ice a heavy snow blocked the roads and made travel difficult. At Cooper's Tavern near the foot of Tuscarora Mountain the snow was so deep that they were forced to abandon their wagons and build sledges to carry baggage and tools. The horses were then hitched to the sledges in single file, and the men walked ahead to break a path. After two weeks of this slow travel, they arrived at Sumrill's Ferry on February 14.



PIONEER SETTLERS BUILDING ADVENTURE GALLEY ON
THE YOUGHIOGHENY

On account of the severe cold and deep snow little progress had been made by White's men in building boats; but with the arrival of the superintendent and more laborers the work went ahead rapidly under the direction of Jonathan Devol, a ship builder. The largest boat was a galley constructed of heavy timber to deflect bullets and covered with a deck-roof high enough for a man to walk upright under the beams. It was 50 feet long and 13 feet wide with an estimated carrying capacity of 21 tons, although, as Putnam records it, it was of green timber and its real capacity, therefore, uncertain. The *Adventure Galley* is the name commonly ascribed to this boat, although as an afterthought some called it the *American Mayflower*. Rufus Putnam in his diary written at the time calls it "Union Galley." Since one boat would not transport the 48 men with their horses, tools, baggage, and food to support them until their crops matured, a large flatboat, 28' x 8',

and three canoes were also constructed. It will be interesting to know something of what these “canoes” were like. They were not the hollowed-out log Indian canoes, nor were they of birch bark. Putnam describes them as of two tons, one ton, and 800 pounds burthen, respectively.

The popular small boat of the Ohio River, large enough to carry more than would the log canoe, was called a pirogue. It was a log canoe split in half lengthwise and with a wide flat section inserted between the two halves. This made a substantial and safer boat, with greatly increased carrying capacity, yet easy to handle, and, of course, easy for the pioneers to build with the primitive materials at hand.

And, speaking of boats and pioneers, Cutler records in his diary that on August 15, 1788, Tupper, who had been among the original party of settlers, took him down the river to see his new “mode for propelling a boat instead of oars.” This consisted of a “machine in the form of a screw with short blades, and placed in the stern of a boat, which we turned with a crank. It succeeded to admiration, and I think it a very useful discovery.” Thus, in the wilderness of Northwest Territory and 50 years before it came into general use, the screw propeller was invented and successfully demonstrated.

On April 1, 1788, the 48 pioneer settlers of the Northwest Territory launched their boats out into the Youghiogheny and pushed down that river to the Monongahela. At Pittsburgh they swung out into the current of the broad Ohio. John Mathews had been working since February 27 to collect provisions for the expedition at the mouth of Buffalo Creek (now Wellsburg, West Virginia). The horses, oxen and wagons had been sent overland to this point. After stopping the entire day of April 5 to load these provisions, and their equipment, the little flotilla floated on and arrived at the mouth of the Muskingum on the morning of April 7. The banks of the Muskingum at that time were lined with tall sycamores, which leaned out over the water, and so narrowed the mouth that the pioneers could not see it through the rain. Consequently the current carried them past the mouth of the Muskingum and below Fort Harmar. With ropes and the help of soldiers from the fort, the boats were towed back into the Muskingum. Then the pioneers rowed across and landed at noon above the upper point.

In what sense were these 48 founders of Marietta the first settlers in the Northwest Territory? Certainly they were not the first white men to live in

the Ohio country. Sault Ste. Marie was planted by Marquette in 1668, 120 years before the founding of Marietta. Burke A. Hinsdale has said that the French posts—Cahokia, Kaskaskia, Vincennes, and many others—in the old Northwest contained a population of 2500 people in 1766. Wisconsin, northern Minnesota, Michigan, and Illinois had been major scenes of French exploration and settlement for a hundred years. But the French made no attempt to colonize their settlements; they preferred to keep the wilderness a vast, unbroken game preserve for trapping furs and Indian trading.

When the English secured possession of the country northwest of the Ohio River at the end of the French and Indian War, the British government angered the colonies, first by the decree of 1763 forbidding settlement, and later by ignoring the colonial charters which had granted the colonies territory “from sea to sea” and passing the Quebec Act of 1774, in which representative government was abolished.

It is not possible, a hundred and fifty years later, even if it were possible at the time, to interpret the working of the minds of the English king and council. It is a fair surmise, however, supported by considerable evidence, that the crown then saw the threat of American independence, if the American people could establish themselves in this vast and fertile empire beyond the mountains where physical geography alone would make it impossible for the mother country to hold the colonies in subjection or enforce her decrees upon them.



LANDING OF PIONEER SETTLERS IN NORTHWEST
TERRITORY AT MARIETTA

As early as 1761 Frederick Post from Pennsylvania, a Moravian missionary to the Indians, built perhaps the first “American’s” house in Ohio on the Tuscarawas River. On May 3, 1772, David Zeisberger and a company of Christian Indians established Moravian villages at Schoenbrunn, Gnadenhutten, and Lichtenau (near present New Philadelphia). Clarksville, now a suburb of Jeffersonville, Indiana, had been established by George Rogers Clark in 1784. Wiseman’s Bottom, four miles above the mouth of the Muskingum, was named after a man who made a clearing as entry right to 400 acres while Virginia still claimed the land north of the Ohio. During the Revolutionary War squatters began to settle northwest of the Ohio. Since these squatters were trespassing on lands reserved by treaty for the Indians, Congress attempted to drive them out. Ensign John Armstrong reported in 1785 that “there are at the falls of the

Hawk Hawkin [Hocking River] upwards of 300 families, and at the Muskingum a number equal.” The squatters even elected one William Hogland, governor. These temporary and unlawful settlements would defeat orderly settlement, and deprive the new nation of the income from sale of the lands. To prevent such illegal occupation Fort Harmar was erected on the Ohio at the mouth of the Muskingum.

Marietta was the first legal American settlement northwest of the Ohio River under the Ordinance of 1787.

The Ohio Company of Associates spoke so enthusiastically in praise of their land that other New Englanders jokingly referred to the purchase as “Putnam’s Paradise” and “Cutler’s Indian Heaven.” Aside from the fact that the land was hilly in some sections, it came up to the expectations of the settlers. In contrast to the cold weather they had experienced in Pennsylvania, the pioneers found that the trees were in leaf at the Muskingum and grass was high enough for pasturing their horses. Over the entire region stretched an almost unbroken forest of great poplar, sycamore, maple, oak, hickory, elm, and other trees. Cutler records that on his visit to Marietta he saw a hollow tree forty-one and a half feet in circumference that would hold 84 men or afford room inside for six horsemen to ride abreast. The circles counted in one tree indicated that it was at least 463 years old. In boasting of the fertility of the land one settler wrote that “the corn has grown nine inches in twenty-four hours, for two or three days past.” Buffalo and elk were found in the woods when the pioneers arrived. A hunter could kill 20 deer in one day near Marietta. Wild turkeys weighing from 16 to 30 pounds were caught in pens and clubbed to death. The woods were alive with foxes, opossum, raccoon, beaver, otter, squirrels, rabbits and other small game. Bears, panthers, wild cats, and wolves were a menace to stock. Schools of fish made so much noise with their flopping against the boats that the men could not sleep on board. The largest fish caught were a black catfish weighing 96 pounds and a pike six feet long, weighing almost a hundred pounds.

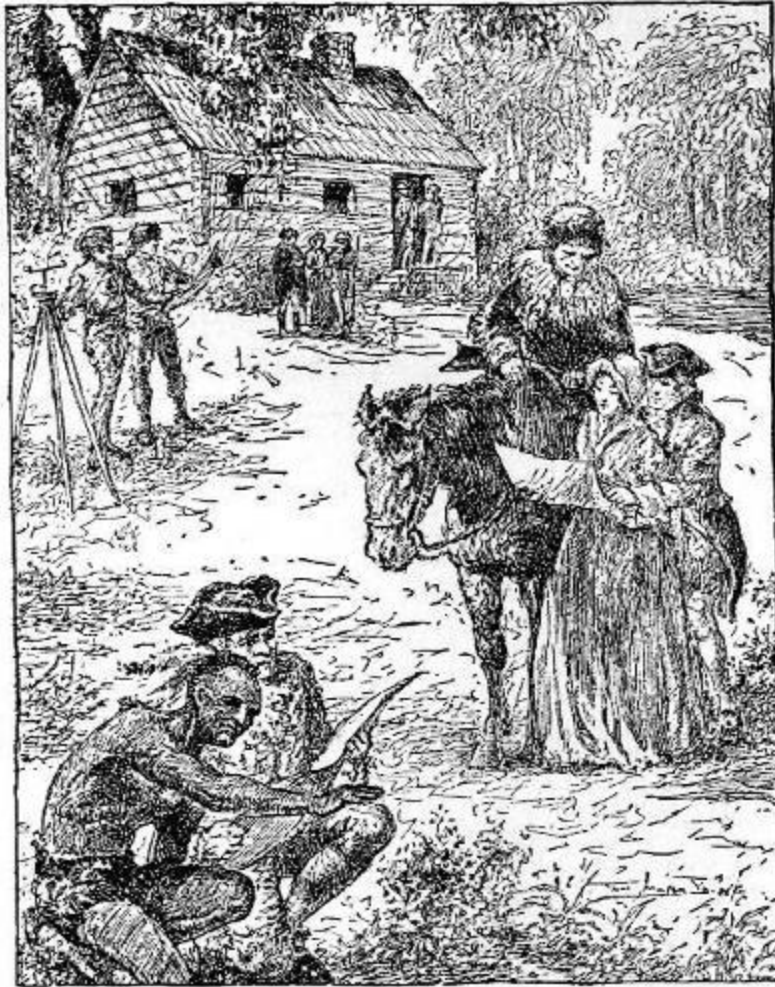
When the pioneers arrived on April 7, 1788, they were welcomed by approximately 70 Delaware Indians, who were camping at the mouth of the Muskingum to trade furs at Fort Harmar. Their chief, Captain Pipe, assured the white settlers that his people would live at their home on the head waters of the river in peace with their new neighbors. Encouraged by this

reception, the men unloaded the boards for their houses the first day and set up a large tent in which Putnam had his headquarters.

On the next day the laborers began clearing land, and on April 9 the surveyors started laying off the eight-acre lots. By April 12 four acres of land had been cleared at "The Point," and work proceeded rapidly in building cabins and planting seed.

At first the pioneers called their settlement Muskingum. This name was a form of the Delaware word Mooskingung, meaning Elk Eye River in reference to the large herds of elk that ranged in the valley. Cutler's choice for a name was the Greek word Adelpia, which means brethren. But on July 2, at the first meeting of the directors and agents in the new settlement, it was "resolved, That the City near the confluence of the Ohio and Muskingum, be called Marietta." History generally records that this name was a word formed from the first and last syllables of the name of Queen Marie Antoinette of France, chosen by the veterans of the Revolution as a gallant tribute to the nation which aided them in throwing off the shackles of English rule. Why the final a is uncertain.

Marietta was only the first of the settlements in the Northwest Territory under the ordinance. Many others were to follow rapidly, some destined to become great or small cities, and others to remain as villages. It is worthwhile, however, to follow briefly the history of this first official settlement for its depiction of the type of immigration into the new country and to illustrate the problems settlers faced in pushing America westward.



SETTLERS RECEIVING DEEDS FROM OHIO COMPANY'S
LAND OFFICE AT MARIETTA

For instance, in surveying the city the directors of the Ohio Company provided for wide streets and public parks. The principal streets of 90 feet in width ran parallel to the Muskingum River and were designated by numbers. They were intersected by cross streets named after Washington, Putnam and other Revolutionary generals. The bank of the Muskingum was set aside as a “commons” and dedicated forever to public use. It was called “The Bouery” and is today a public park. Within the city limits the surveyors found extensive earthworks and mounds which supplied mysterious evidence of a prehistoric race, which had sometime constructed a city on the same site. Colonel John May described the cutting of a tree that had grown for 443 years on one of the earthworks. The larger elevated square was named Capitolium, the smaller was called Quadranau, and the road with high embankments from the river to the “Forty acre fort” was

officially designated as Sacra Via. These were all dedicated as public property and are so today. A creek which emptied into the Muskingum below Campus Martius was called the Tiber, after the river near Rome. This use of classical names indicates that the cultured founders of Marietta were familiar with Latin and Greek literature.

The first cabins had been built at “the point” and a stockade erected enclosing some four and a half acres. The Indians told the settlers of the flood danger, showing them driftwood and laconically pointed out that “where water has been water will be again.”

In platting the city-to-be the pioneers, therefore, laid out an extremely broad street on high ground as the intended main street of the town, and named it for Washington. The complete dependence of the time upon river transportation and the distance of Washington Street from the Ohio River prevented its attaining its designed purpose and the business district of the city has never since realized the expectation of those first settlers.

Early in May, when the crops had been planted in the clearing and cabins had been constructed at “Picketed Point,” Putnam decided from his study of treaties at the war office in New York that the tribes would not permit their lands to be occupied without a struggle. May wrote in his Journal: “At Boston we have frequent alarms of fire, and inundations of the tide; here the Indians answer the same purpose.” On account of the danger of Indian attack all men not needed in the survey were put to work at the construction of an impregnable fort. This defense was called Campus Martius, after a name applied to a grassy plain along the Tiber in ancient Rome where military drills and elections had been held. The phrase literally means “a field dedicated to Mars, the god of war.”

The fortress was located on Washington Street, three quarters of a mile above the Ohio River. It consisted of 14 two-story houses arranged in the form of a hollow square, which measured 180 feet on a side. At each corner of the square stood a blockhouse with projecting upper story. Loopholes were cut in the projecting floor for showering bullets on Indian attackers. The entire fort was constructed of poplar planks four inches thick and 18 to 20 inches wide, which men hewed and whipsawed from the huge poplar trees that grew along the Muskingum. In one of the fort’s houses, which became Rufus Putnam’s home after the fort was dismantled, and which is

now part of Campus Martius Museum, can still be seen the original timbers and form of construction. In the timbers, hewn in pre-determined shapes, were stamped Roman numerals, and by matching corresponding numbers, the artisans of that day were able to assemble the timbers into complete and substantial structures.

The blockhouses and part of the dwellings were built at the expense of the Ohio Company. On July 21, 1788, the directors ordered that carpenters be employed at half a dollar a day and one ration to complete the blockhouses, and that laborers be paid seven dollars per month and one ration per day. It was provided

“That a Ration consists of 1½ [lbs.] of Bread or Flour.

“1 lb. of Pork or Beef, Venison or other meat equivalent.

“1 Gill of Whisky.

“Vegetables.”

The complete structure contained 72 rooms. When the Indians finally went on the war path, the inhabitants constructed three lines of defense outside the fortress. A row of palisades sloped outward to rest on rails, a line of pickets stood upright in the earth 20 feet beyond the palisades, and a barrier of trees with sharpened boughs formed the first defense. Ammunition, cannon, and spears were stored in convenient places. The northeast blockhouse was used for religious meetings and sessions of the courts. At the outbreak of the Indian Wars in 1791, Campus Martius became the principal refuge of the people in Marietta. Of it, Putnam, who had built West Point and many other Revolutionary War fortifications, wrote that it was the finest fort in the United States.

While Campus Martius was being constructed, the survey was continued, the crops were planted and cabins erected and new settlers arrived. When John May arrived with a party of 11 men on May 26 and was invited to dinner by General Josiah Harmar, he was served, according to his diary, “beef a la mode, boiled fish, bear-steaks, roast venison, etc., excellent succotash, salads, and cranberry sauce.” Venison sold for two cents a pound and bear meat at three cents. May was surprised to see in Doughty’s garden an orchard of apple and peach trees and “cotton growing in perfection.”

Varnum arrived with a company of 40 settlers on June 5. Among them were James Owen and his wife, Mary Owen, the first woman who settled in the community. The settlers were so industrious that by June 20, 132 acres had been planted in corn in addition to large fields in potatoes, beans, and other vegetables.

As soon as the pioneers had provided shelter for themselves, they organized a temporary government to insure order and safety until the arrival of the officers of the Northwest Territory. On June 13 at an informal meeting of the directors and agents of the Ohio Company, it was decided that the directors present should act as a board of police to draw up a set of laws for the community. Colonel Return Jonathan Meigs was appointed to administer them. At the first official meeting of the directors the board of police was confirmed. The regulations provided for cleanliness, health, decency, safety, and moral conduct. Military guard was established. If any persons arrived who were not stockholders in the Ohio Company, the board of police was empowered to decide whether or not they should be permitted to stay. Settlers were required to carry arms during their work in the fields. No one was allowed to trade with the Indians without permission from the board or from Fort Harmar. Punishment for violation of the laws was to consist of either labor for the public, or expulsion. As evidence of the orderly conduct of the settlers it has been pointed out that in three months there was only one difference, and that was compromised. On July 4 the board of police nailed these temporary laws to the smooth trunk of a large beech tree near the mouth of the Muskingum.

On July 4 all work was suspended to celebrate the anniversary of the Declaration of Independence. Since most of the settlers had served in the Revolutionary Army, they observed the occasion with feelings of intense patriotism. A federal salute of 13 guns from Fort Harmar opened the celebration at dawn. At "The Point" on the east bank of the Muskingum a table 60 feet long was spread with wild meat, fish, vegetables, grog, punch, and wine. Harmar arrived with his lady and officers from the fort at one o'clock. Varnum, one of the judges of the territory, then delivered a flowery oration.

After the oration, the guests were twice driven from the table by thunderstorms before they finally finished dinner. The patriotic event

continued with the drinking of the following toasts which illustrate the topics of general interest of the time:

1. The United States.
2. The Congress.
3. His Most Christian Majesty, the King of France.
4. The United Netherlands.
5. The Friendly Powers throughout the World.
6. The New Federal Constitution.
7. His Excellency General Washington, and the Society of Cincinnati.
8. His Excellency Governor St. Clair, and the Western Territory.
9. The memory of Those Who Have Nobly Fallen in Defense of American Freedom.
10. Patriots, and Heroes.
11. Captain Pipe, Chief of the Delawares, and a Happy Treaty with the Natives.
12. Agriculture and Commerce, Arts and Sciences.
13. The Amiable Partners of Our Delicate Pleasures.
14. The Glorious Fourth of July.

The Celebration closed with another salute of 13 guns and a “beautiful illumination” at Fort Harmar.

CHAPTER IV

THE BEGINNINGS OF GOVERNMENT

The Northwest Territory at the time of its organization included all of the region comprising the present states of Ohio, Indiana, Illinois, Michigan, Wisconsin, and a portion of Minnesota. The ordinance for its government was framed and ordained at the last session of the Continental Congress in 1787.

This ordinance vested the governing authority in four men, a governor and three judges. Two years later, by act of Congress, “the Secretary of the Territory, in case of the death, removal, resignation or necessary absence of the Governor, became the acting Governor.”

The first governor of the Northwest Territory was Arthur St. Clair, who arrived at the new settlement, July 9, 1788. He landed at Fort Harmar, which was garrisoned with United States troops. Sergeant Joseph Buell, who was stationed at Fort Harmar, wrote in his Journal on the day of the governor’s arrival:

“On landing he was saluted with thirteen rounds from the field piece. On entering the garrison the music played a salute; the troops paraded and presented their arms. He was also saluted by a clap of thunder and a heavy shower of rain as he entered the fort: and thus we received our governor of the western frontiers.”

St. Clair was educated at the University of Edinburgh, Scotland, came to America, joined the Colonial Army, and rose to the rank of major general. He served as president of the Continental Congress and stood high in the confidence of George Washington. His military reputation, however, later lost much of its luster in his terrible defeat by the Indians on November 4, 1791, in what is now Mercer County, Ohio. He still owned a large tract of land in the Ligonier Valley in Pennsylvania and returned there for his last years. He died in 1818 and was buried at Greensburg, Pennsylvania.

The secretary of the Northwest Territory was Winthrop Sargent, a graduate of Harvard, a Revolutionary soldier with a fine record, and the

scion of an American family whose representatives have risen to fame in literature, science and art. Judge James Mitchell Varnum, Samuel Holden Parsons and John Cleves Symmes, who constituted the first members of the Supreme Court of the territory, had all risen to high rank as officers of the Colonial Army in the Revolutionary War. Varnum was a graduate of Brown University and Parsons of Harvard. All were able lawyers, and Symmes had been chief justice of the Supreme Court of New Jersey. Under the ordinance for the government of the Northwest Territory, St. Clair, Varnum, Parsons, and Symmes constituted the legislature.

Their law-making power, however, was limited in the ordinance, which declared:

“The governor and judges, or a majority of them, shall adopt and publish in the district, such laws of the original states,—as may be necessary and best suited to the circumstances of the district.”

This seems perfectly clear. This little legislature of the governor and three judges could only *adopt* such laws as were already in force in the original states. This lucid statement, however, was made somewhat obscure by the following language in another clause of the ordinance: “The laws to be adopted or made, shall be in force in all parts of the district.” At least that appears to have been the practical conclusion of this legislature, with the exception of St. Clair, who somewhat mildly warned his fellow members against enacting laws not drawn from the statutes of the states. After sounding the warning, however, he joined the other members in enacting laws with small regard to the statutes of the original states.



GOVERNOR ARTHUR ST. CLAIR

Drawn by Jane Cory, Frankfort, Ohio

The first law enacted by the governor and judges provided for a territorial militia in which all men over 16 years of age were to be enlisted. Each man was required to provide himself with musket and cartridge box. Murder and treason were punishable by death according to another law, and flogging was prescribed for theft and minor offenses. A fine of ten dimes was imposed for drunkenness; and, if the guilty person did not pay the fine, he served an hour in stocks. Other laws regulated marriage, set aside Sunday as a day of rest, and urged all citizens to avoid swearing and “idle, vain, and obscene conversations.” On July 27, 1788, St. Clair established Washington County, which originally included almost half of the present state of Ohio.

After a number of laws had been enacted by this territorial legislature and had been published by Congress in two small volumes called “Laws of the Governor and Judges,” the House passed a bill declaring all the laws of the territory thus enacted null and void. While the bill did not pass the Senate, it was stated that the members of that body were in agreement with the House, but that they did not pass the bill because they felt that these laws of

the territory were null without any action by Congress. The governor and judges found themselves without laws with which to govern. The legal structure which they had been industriously building was about to tumble down to ruin. The last of these worthless laws that they enacted bore the date of August 1, 1792.

St. Clair wished to assemble the legislature, which it will be remembered, was composed of himself and the three judges, to *adopt laws in accordance with* the requirements of the ordinance, in order that the territorial government might be administered by constitutional authority.

On July 25, 1793, he called the legislature of the territory to convene in Cincinnati on September 1 of the same year. Due to the difficulties of communication and transportation it was found impossible, however, to meet on September 1, 1793, and it was not until the twenty-ninth day of May, 1795, that a majority of the members of the legislature were able to assemble in Cincinnati. In other words, it took about 20 months to assemble to meet this emergency and adopt a new code of laws to take the place of those which had been nullified by Congress.

Finally, St. Clair, Symmes and George Turner, who had been appointed to take the place of Varnum, deceased, met in Cincinnati on May 29, 1795, to adopt a code of laws. The remaining judge, Rufus Putnam, was not in attendance.

This is the first *recorded* meeting of a legislative body within the present limits of Ohio and the territory northwest of the Ohio River. This legislature chose its officers and assembled in regular session until it concluded its labors and provided for the publication, in the Maxwell code, of the laws it adopted, the very first published in the Northwest Territory.

Governor Arthur St. Clair presided. Judges John Cleves Symmes and George Turner were the floor members. Accordingly, there were just enough members present to conduct the legislative proceedings—one member to make a motion, another to second it, the presiding governor to put it to a vote. Armstead Churchill was chosen and commissioned clerk of the legislature. He appears not only to have kept a record of the proceedings, but to have prepared drafts of bills for consideration. He received eight cents for every one hundred words that he wrote.

St. Clair read a lengthy address to the two judges. In the opening sentences one can gather some knowledge of the difficulties with which these pioneer legislators had to contend. There were no roads, no steamboats, no coaches, no telegraph. The mails were uncertain, few and far between. Prowling Indians had not ceased to be a menace. Rivers often could not be forded and there were few ferries. The “highways” of travel were the “low ways”—the rivers winding through the unbroken solitudes of the primeval forests.

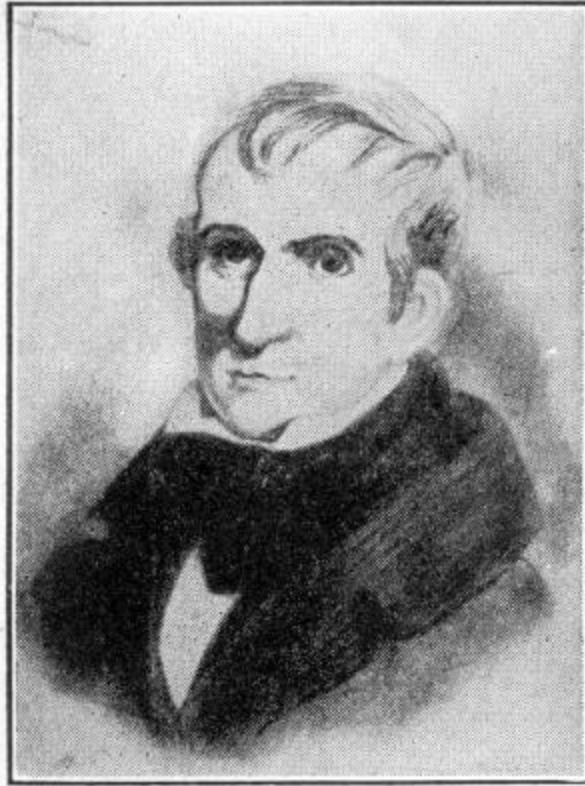
The Ohio was often difficult to navigate. In February, 1795, Judge Symmes made an effort to meet St. Clair at Marietta. We quote the result from one of his letters:

“On the 20th of February, therefore, I set out from Cincinnati on my passage up the river, and was buffeted by high waters, drifting ice, heavy storms of wind and rain, frost and snow for twenty-three days and nights, without sleeping once in all that time in any house after leaving Columbia. I waited in vain twelve days at Marietta for the coming of the Governor, and, he not appearing, I returned home.”

Travel in these times was not only inconvenient and difficult, but dangerous. Parsons, one of the first judges of the Northwest Territory, lost his life by drowning, on his return journey from the Western Reserve in 1789 down the Big Beaver.

After St. Clair’s message, a resolution was adopted opening the meetings of the legislature to the public. After inviting the public to the sessions, the legislature adjourned to meet the following day. At the second meeting the two judges wrote a dignified reply to the message from the governor.

The record of their proceedings rested securely in an iron box for about 130 years, after which they came into the possession of the Ohio State Archaeological and Historical Society. This record shows that the members of this legislature took themselves and their work seriously. What they lacked in numbers they made up in dignity and decorum. This legislature was in session from May 29 to August 25, 1795. It completed the work for which it had been called and gave to the Northwest Territory a code of laws framed in strict accord with the Ordinance of 1787.



WILLIAM HENRY HARRISON

Drawn by William Olson, Downers Grove, Ill.

While these legislative meetings were in session at Cincinnati, General Anthony Wayne was concluding the treaty with the Indians at Greenville, opening the Northwest to peaceful settlement. The subsequent rapid increase in population soon entitled the territory to the second stage of government provided by the ordinance—a legislature chosen by its people to enact laws as soon as there were 5000 free male inhabitants of full age in the territory. This first elected legislature met in September, 1799, and re-affirmed the earlier laws of the governor and judges.

The next year Congress divided the Northwest Territory into two parts, the eastern part, comprising approximately present Ohio and eastern Michigan, remaining as the Northwest Territory; and the western part, comprising the balance of the previous territory, becoming Indiana Territory. At this time the territorial capitals were first definitely located, one at Chillicothe, Ohio, and the other at Vincennes, Indiana. Thus, Chillicothe became the first capital of the Northwest Territory and remained so until the state of Ohio was admitted to the Union in 1803.



OLD INDIANA TERRITORIAL HALL

Drawn by Robert Osterhag, Vincennes, Ind.

While the governor and some of the judges lived at Marietta, and they had enacted laws at meetings there, those laws had been invalidated. There was then no officially designated capital of the territory, the judges meeting and promulgating laws wherever might be convenient. In 1790, St. Clair had removed to Cincinnati in preparation for his campaign against the Indians, which proved so disastrous in 1791.



OX TEAM AND COVERED WAGON PARTY

Drawn by Earl Laweck, Roger City, Michigan

CHAPTER V

GROWTH OF SETTLEMENTS

The arrival of Governor Arthur St. Clair and the territorial judges encouraged immigration by assuring settlers of the institution of law and order. When the Reverend Daniel Breck delivered a sermon in the present state of Ohio, on Sunday, July 20, 1788, he addressed an audience of 300 people from Marietta and the settlement of Isaac Williams on the Virginia side of the river. After Manasseh Cutler returned home from his visit in 1788, General Samuel Holden Parsons wrote to him on December 11 that “we have had an addition of about one hundred within two weeks.... Between forty and fifty houses are so far done as to receive families.”

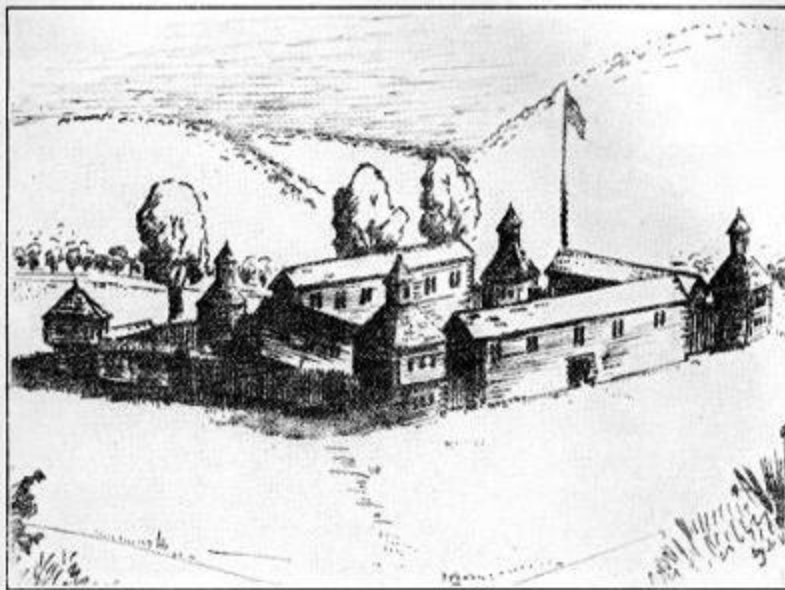
By the end of the year, 1788, the settlement contained 132 men and 15 families, making a total of nearly 200. James Backus wrote to his parents that their stock consisted of “one hundred and fifty horses, sixty cows, and seven yoke of oxen.”

In August of 1787 Judge John Cleves Symmes, an influential man and member of Congress from Trenton, New Jersey, petitioned Congress for a grant of land between the two Miami Rivers at the mouth of the Little Miami River, which became known to history as “The Symmes purchase.” In November of 1788 Benjamin Stites and about 20 others settled Columbia and in late December of the same year Matthias Denman, Colonel Robert Patterson and Israel Ludlow with a party of 26 men established Losantiville about five miles west of Columbia in the Symmes tract and in the very center of present Cincinnati. These two communities became Cincinnati in 1790 at the request of St. Clair. North Bend was the third of the Symmes settlements and was settled in February, 1789.

All the settlements suffered a hard winter. At Marietta the Ohio was frozen over from December until March and the settlers could not get to Pittsburgh for provisions. Their crops were not large the first year, and the Indians had driven the game away. Many lived on meat and boiled corn or coarse meal ground in a hand mill. Here again was demonstrated the heroism of peace.

Isaac and Rebecca Williams, living in Virginia, directly across the Ohio River from Marietta, had raised a goodly supply of corn, which, because of scarcity, had reached two dollars a bushel in the markets. Yet they chose to sell it to the hungry settlers at fifty cents per bushel, and proportioned it out according to the number of members of each family.

In order to raise larger crops to provide adequate food supply for the future, two branch settlements were made early in the spring. Fifteen miles below Marietta a farming community called Belpre was formed by 40 associates who had spent the winter in Marietta. Extending for five miles along the Ohio, the settlement consisted of upper, middle and lower divisions called respectively Stone's Fort, Farmers' Castle, and Newbury. Farmers' Castle was a fortification containing 13 cabins built for safety during the Indian War. Soon after Belpre was settled, 39 associates moved 20 miles up the Muskingum to establish themselves at Plainfield, later called Waterford. Fort Frye was constructed as a place of refuge when the Indian War started. About a mile away a mill was built on Wolf Creek by some families who lived in the vicinity. Hearing of the growth of the Ohio Company settlement, the Virginia House of Burgesses appropriated money for a road from Alexandria to the Ohio River opposite Marietta. Merchandise was hauled over this road for many years.



FORT WASHINGTON, CINCINNATI

Drawn by Junior Vahle, Quincy, Illinois

The Ohio Company assisted settlers in establishing themselves. Surveyors went out to lay off the lots at times when it was necessary to maintain a guard of soldiers against Indian attacks. The Ohio Company's Land Office in which the surveys were recorded, is now the oldest building in Ohio. Liberal grants of land were made to persons who constructed mills for the convenience of settlers. The first flour mill in Ohio was erected about a mile from the mouth of Wolf Creek in 1789 by Major Haffield White, Colonel Robert Oliver, and Captain John Dodge. In 1797 a brickyard and tannery were established on land provided by the Ohio Company. In December of the same year Peletiah White started a small earthenware pottery, which according to Samuel P. Hildreth "was probably the first establishment of the kind north of the Ohio." The directors provided for the fencing and ornamentation of the public squares in Marietta. For example, Marie Antoinette Square was leased to Rufus Putnam on condition that he plant mulberry, elm, honey locust, and evergreen trees in a specified design.

Near the end of the year 1788 the directors of the Ohio Company had become worried over the fact that thousands of immigrants floated past Marietta to settle in Kentucky. To attract some of these people to remain in the Ohio Company purchase the directors offered 100 acres to men who would agree to build a dwelling house 24 by 18 feet within five years, plant 50 apple or pear trees and 20 peach trees within three years, cultivate five acres, and provide themselves with arms and ammunition for defense. Settlements on donation lands were expected to serve as outposts of defense against Indian attack. After granting some free tracts, the Ohio Company found the practice too expensive and successfully petitioned Congress in 1792 for a tract of 100,000 acres for donation purposes. Located in the northeastern part of the Ohio Company Purchase, the donation tract was approximately 22 miles long and seven miles wide. In the autumn of 1790 a group of 36 men established a settlement on donation land 30 miles up the Muskingum from Marietta, at a place called Big Bottom.

The first town meeting in the territory was held in Marietta on February 4, 1789. Colonel Archibald Crary presided as chairman, and Ebenezer Battelle was elected clerk. A committee was appointed to draft an address to St. Clair, and report a plan for a police system. The police board appointed under this plan consisted of Putnam, Oliver, Griffin Green, and Nathaniel

Goodale. In addition to their police duties, these men appointed a sealer of weights and measures, fence viewers, and a registrar of births and deaths. Laws were passed for the government of the community. Many of the regulations provided for defense against the Indians by completing Campus Martius and by securely bolting the gates at sunset. It was ordered "that the main Street leading from Campus Martius to Corey's bridge, so called, should be cleared of logs and other woods that may obstruct it." Residents of Campus Martius were ordered to construct walks of hewn logs along their cabins and to provide troughs or gutters to drain water from the eaves. Wagons, horses, cattle, and swine were not permitted inside the fort. One resolution prohibited the purchase of wild meats for the purpose of monopolizing the supply and charging extravagant prices.



TECUMSEH

Drawn by Robert Eggebrecht, Vincennes, Ind.

Food was scarce at the Miami settlements also, and the Indians were showing increasing signs of resistance to the whites. Several community blockhouses had been built and small parties of troops sent there to guard the settlements and their all-essential crops.

In January, 1790, St. Clair removed to Cincinnati, and Major John Doughty with his troops from Fort Harmar started construction of Fort Washington as headquarters for increasingly necessary western troops. General Josiah Harmar arrived in the fall of that year and took charge of the garrison then comprising 70 men.

Casual readers of history at times marvel at the small size of garrisons and armies used in these hazardous campaigns against the Indians, and thereby incline to minimize the severity of the conflicts. To understand this, it is necessary to realize how few people relatively were in the entire empire of the Northwest; that transportation and communication were so difficult as to make the movements of large bodies of men impossible, even if men had been available; that provisions and supplies could not be moved in quantity and, beyond two or three days' supply the men could carry, the troops had to live on game and what the wilderness provided; and, lastly, that the Indians were usually small tribes and attacked in relatively small groups.

The protection normally needed was that of small detachments of hardy and fearless men trained to the ways of the woods and the Indians. One of the great problems of the period, as will be seen later, was the militia or volunteers, who, though eager to fight the Indians, were too impetuous, too unfamiliar with discipline, and too likely to decide to return to their homes upon their own initiative.

In October, 1790, a party of immigrants from France—anxious to escape the impending French Revolution—bought lands and settled in the lower part of the Ohio Company Purchase at a village called Gallipolis, or the city of the French. They had been deceived by representatives of the Scioto Purchase, and believed that they were buying a Garden of Eden, where nature provided the necessities of life without labor. For instance, they had been told by agents of the Scioto Company, which will be described later, that candles grew in swamps on their lands (cat tails), and that custard grew on trees (paw paws).

Here it seems proper to digress for a moment as to the Scioto Company—or more particularly to discuss the fact that in those days not all public men were heroes, and some were not even honest. Then, as now, the

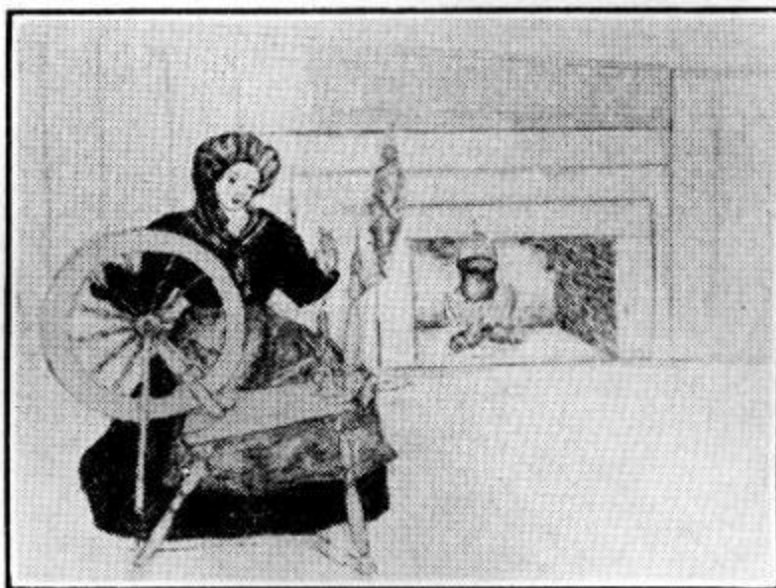
forward-looking forces of progress had to contend with selfishness, politics, chicanery and downright dishonesty.

It has been before pointed out that when Cutler was negotiating with Congress for purchase of Ohio Company lands, a group had approached him with a proposal to make another purchase at the same time for another company, and that he used this larger purchase to secure passage of the Ordinance of 1787. This other company was the Scioto Company, whose membership is not known beyond a small group. Its negotiations with the Ohio Company were carried on by one man, a public official. Cutler and Putnam did not permit the Ohio Company of Associates to become entangled with this other company—beyond the fact that the two purchases were to be made at the same time.

The Scioto Company was to purchase some 3,500,000 acres in the valley of the Scioto River. They sent Joel Barlow, a fair poet perhaps, but of questionable business sagacity, to France to dispose of these lands to fear-worn French. Barlow employed one William Playfair to sell the lands, and it was in the booklet the latter prepared that the fantastic statements as to candles, custard, etc., appeared. The sale was highly successful. Middle-class French in such jeopardy between the revolutionists and the aristocracy, hastened to emigrate to the new land of dreams. What became of the moneys they paid for their new homes has never been proved. Someone absconded and when they landed at Alexandria, Virginia, they learned that the Scioto Company had never acquired title to the lands sold to them.

One interesting incident of this skullduggery is worth mention. Among the French settlers was François D'Hebecourt, a close boyhood friend of Napoleon Bonaparte. Bonaparte had originally considered joining the party, but remained behind to follow if his friend's reports substantiated the claims made. In case the new country did come up to expectations, he was to follow D'Hebecourt, and establish a new empire somewhere in western America. Of course, D'Hebecourt's reports of the villainy of the Scioto Company, the hovels they found for homes and the ensuing famine which the French settlers endured changed Bonaparte's intentions, and he remained in France to leave his mark later on all Europe.

There are two very interesting suppositions suggested. Suppose the Scioto Company had kept its word, what might have been the subsequent history of the world? And suppose, as is altogether possible, that Bonaparte's revulsion at the treatment of his countrymen had influenced him 13 years later in selling Louisiana Territory to the United States. The portent of such possibilities has no direct connection with our story, except to show what small affairs of men may affect all history and the millions of people who live afterward, and, an indication that the world is not worse, morally or ethically, now than it was then.



SPINNING

Drawn by Lloyd Hune, Marietta, Ohio

Through the intervention of President George Washington, Colonel William Duer of the Scioto Company agreed to transport the emigrants to their lands, opposite the mouth of the Big Kanawha. In the meantime, surveyors discovered that this village site lay within the Ohio Company Purchase, and not, as supposed, within the Scioto Purchase. Duer contracted with Putnam to erect buildings for the settlers. Accordingly, Major John Burnham, with 40 men, erected four rows of 20 cabins each, with blockhouses at the corners and a small breastwork in front. To these crude dwellings came the artisans, lawyers, jewelers, physicians, and servants, the exiled nobility of France. They were so ignorant of pioneer ways that some were killed beneath the fall of the trees they chopped down. When the Ohio

Company adjusted its affairs in December, 1795, the French settlers paid for their land a second time by buying it for a dollar and a quarter per acre. At a later time the United States government granted these unfortunate French a tract of land near Portsmouth, Ohio, but few of them ever moved there.

During the Indian war these citizens of Gallipolis were not molested by the warriors, who still had friendly feelings toward their former French allies in Canada. The other settlers, however, were not so fortunate in escaping Indian hostility. On May 1, 1789, only four months after the Treaty of Fort Harmar, Captain Zebulon King was killed and scalped by two Indians at Belpre. In August two boys were killed two miles up the Little Kanawha River in Virginia. Murders occurred with increasing frequency along the frontier. Settlers in Virginia, Kentucky, and the Ohio settlements called for protection. In 1790, Washington sent Harmar northward from Cincinnati with an expedition to punish the Indians in the Miami country, and compel obedience to the treaties of Fort McIntosh and Fort Harmar, but the warriors defeated his army so severely that they became bolder than ever in their revengeful attacks.

On Sunday, January 2, 1791, a war party of thirty Delaware and Wyandots attacked the settlers on donation lands at Big Bottom. Thirteen people, including a woman and two children, were gathered in a two-story blockhouse of beech logs. Four men were eating supper in a cabin a hundred yards above the blockhouse, and two men were preparing their meal in another cabin below the main building. A light snow covered the ground, and the ice on the Muskingum was strong enough to hold the Indians who crossed from the trail on the opposite side. While a few of their number tied the four men in the upper cabin, the main body of Indians surrounded the blockhouse. One of them pushed open the door, and his companions fired at the men around the fireplace. Then the Indians rushed in and massacred the settlers before they could reach their weapons. Twelve people were killed, five were made captives, and the two men in the lower cabin escaped to carry the news to the lower settlements.

Many of the men from Belpre and Waterford were attending the Court of Quarter Sessions in Marietta when the news of the massacre arrived. Hurrying back to their homes, they prepared to defend themselves if other attacks should be made. Several smaller settlements were abandoned, and

the fortifications at Marietta, Belpre, and Waterford were strengthened. On January 8 Putnam wrote to Washington:

“The garrison at Fort Harmar, consisting at this time of little more than twenty men, can afford no protection to our settlements; and the whole number of men in all our settlements, capable of bearing arms, including all civil and military officers, do not exceed 287; and these badly armed. We are in the utmost danger of being swallowed up, should the enemy push the war with vigor during the winter.”



INDIAN CHIEFS BEING ENTERTAINED BY RUFUS
PUTNAM AT CAMPUS MARTIUS

During the following summer a company of United States troops under Major Jonathan Haskell was stationed at the Ohio Company settlements. The roofs of Campus Martius were covered with four inches of clay as a protection against flaming arrows. Picketed Point was strengthened and another blockhouse built for quartering troops. Colonel Ebenezer Sproat commanded a detail of 60 men from the militia in building fortifications. Six scouts, two from each of the settlements, started each morning on a circuit of 15 miles to discover the approach of Indians and give the alarm. For this defense the Ohio Company paid a total of \$11,350.90, which was never repaid by the government. During the war the Indians killed 38 settlers in the vicinity of Marietta.

Coming soon after Harmar's tragic defeat, the Big Bottom massacre seemed to justify the boast of the Indians that they would drive the white men out of the Ohio Valley. Washington commissioned St. Clair to lead an army of 2,000 men to punish the tribes. Starting from Fort Washington in October, 1791, they reached the eastern fork of the Wabash at present Fort Recovery, Ohio, on November 3, and encamped without suspicion of danger. At dawn they were surprised by a large body of Indians and forced to retreat with a loss of 900 men. As a result of the bitter criticism directed against St. Clair, a committee of Congress investigated the battle and found that the blame rested not upon St. Clair, but upon the incompetence of the troops and the inadequacy of the equipment. This has been before referred to as a besetting evil of early western campaigns.

The situation had become of serious national consequence. One of the traits of Indian warriors was a desire to be on the winning side. Under the impetus of two crushing defeats administered in quick succession to the American troops, even those tribes which had been peaceable and inoffensive began joining with the war-mad tribes and all white settlements were endangered. There was strong reason to believe, as was later substantiated, that the British who had not evacuated posts in Michigan despite the Treaty of Paris, were aiding and abetting the red man.

Washington realized that decisive steps must be taken if the Northwest was to be saved to the United States, and appointed General "Mad" Anthony Wayne of Revolutionary fame to lead the next expedition against the Indians and their allies.



ANTHONY WAYNE

Drawn by Herbert Krofft, Zanesville, Ohio

After two years of preparation in drilling his troops and building several forts to protect supply trains, he led an army of 2,000 regulars and 1,500 militia to the confluence of the Auglaize and Maumee Rivers. Enroute from Fort Greenville he had performed a notable strategy, which led the Indians on the westward to believe he would attack near present Fort Wayne, Indiana, and those to the east to conclude that he would attack them near present Toledo, Ohio. In reality he drove straight north to the mouth of the Auglaize where he built Fort Defiance, and thus, because of their absolute dependence upon the Maumee River for transportation, split the Indian forces in half. Taking ample time and with his now well-disciplined army, he attacked the Indians at Fallen Timbers, west of present Toledo. Here, behind trees blown down by a tornado, an army of 2,000 Indians waited for an attack. On the morning of August 20, 1794, Wayne's army finally crushed the strength and spirit of the Indian hostility.

The British troops at Fort Miami, which was on American soil, four miles away from the battlefield, did not go to the assistance of the Indians, although a number of Canadian soldiers and officers were captured or killed in the battle. This failure of support and the smashing defeat which had been administered to them made possible the Treaty of Greenville, made by Wayne with the Indians on August 5, 1795.

The boundary lines established by this treaty extended somewhat beyond those of the Fort McIntosh Treaty of ten years before. What Wayne and the Greenville Treaty did accomplish was to convince the Indians and their British backers that America meant to hold the Northwest. They remained convinced until the War of 1812, when the matter was settled for all time.

With the advent of peace, settlement of Ohio and the Northwest proceeded rapidly. Virginians swarmed into the Military Tract reserved by her deed of cession for bounty lands. Manchester, on the Ohio River, was settled in 1791 by Colonel (later General) Nathaniel Massie, who also settled Chillicothe in 1796. Chillicothe was to become later the first territorial capital, then the first capital of Ohio.

When Connecticut ceded her claims to the Northwest Territory lands to the United States, reservation had been made in the northeast corner of the present state of Ohio—known as the “Western Reserve.”

A half million acres of this area were set off for the benefit of Connecticut citizens who had suffered loss by fire at the hands of the British in the Revolutionary War. These still bear the name of “Firelands.” In 1795 Connecticut sold the portion of her reserved lands east of the Cuyahoga River to a land company, and here in 1796 Moses Cleaveland established the present city which bears his name.

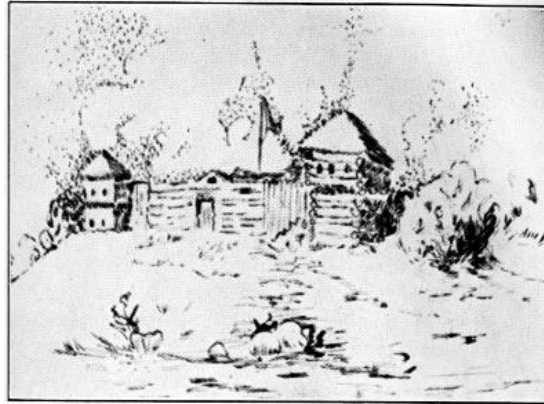
In the central part of the state Franklinton, present Columbus, was laid out in August, 1797. By 1800 the towns of Marietta, Cincinnati, North Bend, Gallipolis, Manchester, Hamilton, Dayton, Franklin, Chillicothe,

Cleveland, Franklinton, Steubenville, Williamsburg and Zanesville and many smaller settlements were in existence.

In the territory to the west settlers were now finding new homes. Settlements around the old French trading posts and forts had grown materially and new centers were springing up in an ever westward march.

The Northwest as an integral and thriving part of the United States was definitely established.

While it would be interesting herein to follow through the developing communities of those states later to be formed from the territory, the purpose of this book apparently requires confinement of details to the formative period of the territory, and, except in unusual cases, towns and cities settled after 1800 will be left to state histories, which are commonly available.



FORT HARRISON ON THE WABASH

Drawn by Helen Jean Marshall, Grand Ledge, Michigan

The region now known as Indiana was traversed by La Salle, possibly along the Ohio in 1670, along the St. Joseph and the Kankakee in 1679. French traders were at the present site of Fort Wayne early in the eighteenth century, and Fort Ouiatenon (southwest of Lafayette) was built by 1722. Vincennes was established and a fort built there by 1732. This entire region remained under French control until after the French and Indian War, when it was surrendered to the English. Following victories at Kaskaskia and Cahokia in the Illinois country, Americans under George Rogers Clark captured Vincennes in 1779. While his expedition was authorized by Governor Patrick Henry of Virginia as a state venture, the final effect was to establish the claim of the United States to the Northwest Territory sufficiently to secure cession by England in the Treaty of Paris.

This event, followed by cession of state claims, opened up the Middle West to the United States, except for Indian titles. The first American settlement in Indiana was made at Clarksville in 1784.

The Treaty of Greenville, made by Wayne in 1795 gave the United States undisputed title to the southwest corner of the present state of Indiana and certain reservations for white settlements. Thus, a hundred and fifty years ago it was the whites who were privileged to live on reservations in Indian territory, rather than as has been the practice since the memory of living men. The "Vincennes tract" and the "Clark grant" had been occupied before the Northwest Ordinance was framed. There followed the Treaty of Greenville, at irregular intervals, well into the middle of the nineteenth century, more than fifty treaties of more or less importance before all Indian titles had passed to the United States.



WILLIAM HENRY HARRISON HOUSE

Drawn by Geneva Kirschhoff, Vincennes, Indiana

In 1800 the population of Indiana Territory (the western part of the Northwest Territory after its division) was 5641 people. Of these, 929 lived in the Clark grant and some 1500 others around Vincennes. Corydon in southern Indiana succeeded Vincennes as the territorial capital in 1813, and so remained when the state was admitted to the Union in 1816. At that time, some 15 counties had been established, all of them in the southern part of the state. The state capital was removed to Indianapolis, its present location, in 1825.

Illinois, located on the great Mississippi River highway of the French explorers and missionaries, had attained a considerable reputation for so remote an area.

About 1700, Kaskaskia and Cahokia, near the present St. Louis, had been settled as trading posts and, along with those erected in present Michigan and Wisconsin, were links in a chain of proposed forts from the St. Lawrence River to the Gulf of Mexico. Such was the intensity of purpose of France with reference to the Northwest in the early 1700's.

In 1712 the Illinois River had been made the northern border of the Louisiana Territory.

As a result of the French and Indian War, however, the territory east of the Mississippi and north of the Ohio River was ceded to England. Due to the Pontiac Conspiracy, an alliance of most of the Indian tribes of the Northwest, it was two years later before the French flag was lowered at Fort Chartres and English dominion effected. As in all the rest of the Northwest after that war, settlement was forbidden by royal decree until around 1770, when settlers poured in from the seaboard colonies. As a result, one of the great early colonial "land bubble" schemes centered in southern Illinois.

In 1771, the Illinois settlers petitioned for, and, in fact, *demand*ed, a form of self-government; but this was refused by Great Britain and in 1774 the Quebec Act annexed the entire area to the Province of Quebec. This all resulted in a considerable sympathy of the Illinois people for the cause of the American colonists in the ensuing Revolutionary War.



FORT DEARBORN, CHICAGO

Drawn by Helen Jean Marshall, Grand Ledge, Michigan

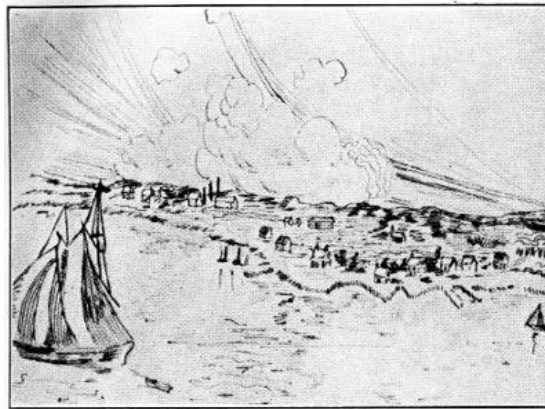
Fort Dearborn, established 1803, and now the site of America's second largest city, was captured in 1812 by the Indians, and as late as 1832 the Blackhawk War was fought in their last effort to retain title.

Due probably to the entrenched squatter settlements scattered through the area, the "first American settlements" are disputed, although Bellefontaine in the present Monroe County is regarded as the first. Shawneetown and Edwardsville were early land offices, along with Kaskaskia and Vincennes.

When lead ore was discovered at Galena in northwestern Illinois, settlement spread rapidly there. As has been said, Chicago began with Fort Dearborn in 1803, but at the time it was incorporated as a city in 1837, the village had but 4,170 inhabitants.

In 1809 the separate Territory of Illinois was created by Congress. The territory entered its second phase of elective officers in 1812, and in 1818 was admitted into the Union. Capitals had been at Kaskaskia, 1809-18; Vandalia, 1819-39; and thereafter at Springfield.

It is impossible to interpret the American phase of Michigan's history without a fairly thorough understanding of the earlier French and English occupancies.



DETROIT IN 1815

Drawn by Helen Jean Marshall, Grand Ledge, Michigan

The French explorer-missionary-trader parties had followed the water courses of the Great Lakes and the Mississippi and other rivers, and founded posts substantial enough, particularly at strategic points, to survive as English and later American communities.

Cadillac settled Detroit in 1701, but the restraint to settlement imposed by the English occupation—1763-1775—precluded any substantial growth. Pontiac, the great Indian chieftain of the Ottawas, effected his conspiracy and made a great effort to retain the territory for the Indians.

Michigan was made a separate territory in 1805 (see chapter on Evolution of the Northwest Territory), and became a state in 1837. The capital had been at Detroit, and so remained until 1847, when it was moved to Lansing.

As has been said, particularly of Illinois and Michigan, growth of American settlement in Wisconsin cannot be dissociated from the French era. Jean Nicolet is credited with being the first white man to explore the region, in 1634. But all the noted French expeditions paved the way for later trading posts and missions.

The Indian population of Wisconsin early in the seventeenth century had probably been the largest of any area of similar size east of the Mississippi River, and hence, with the adjacent Minnesota lands, the region offered great attraction to the fur traders, and to missionaries.

Prairie du Chien and Green Bay were major settlements and county seats of the first counties of the early era. While England held technical possession of the territory—1763-1783—her occupation was ineffective and

of little importance. Wisconsin was, however, the last section of the Northwest Territory to be evacuated by the British.

American traders entered "Ouisconsin" 1760-1766, and were later succeeded by John Jacob Astor's American Fur Company. The lead mines discovered around present Galena, Illinois, by the Frenchman, Perrot, in the late 1600's were a considerable factor in settlement. It is interesting to note that negro slaves were used in these mines in 1820.

Set apart as a territory in 1836, with its first boundaries later changed to the territory east of the Mississippi River in 1838, Wisconsin became a state in 1848, with its capital at Madison.

Technically, under the Ordinance of 1787, all of the Northwest Territory was to become not more than five states, and hence the present portion of Minnesota lying east of the Mississippi represents one of those adjustments of state boundaries established by Congress.

Like the areas of Michigan and Wisconsin, the Minnesota country was first explored by the French, who established missions, developed the fur trade, and conducted a search for the fabled northwest passage to the Pacific. Perhaps the earliest of the French explorers to see the Minnesota country were Radisson and Groseilliers, who may have pushed into what is now part of the state not long after the middle of the seventeenth century, and who came into contact with Sioux Indians in 1659-60. The region became known as a result of the visits of a number of explorers, including Du Lhut, who explored the country between the Mississippi and the St. Croix in the decade following 1679; Father Hennepin, who discovered the Falls of St. Anthony in 1680; Perrot, who laid formal claim to the upper Mississippi country for France in 1689; Le Sueur, who built a post on Prairie Island in the Mississippi in 1695 and Fort L'Huillier on the Blue Earth River in 1700; La Perrière, who established Fort Beauharnois on Lake Pepin in 1727; and La Vérendrye, who with his sons and his nephew opened the great canoe route from Lake Superior to Lake Winnipeg between 1731 and 1743. Along this route, which he believed might connect with the northwest passage, he established a chain of forts, including Fort St. Charles on the Lake of the Woods.

At Grand Portage, where La Vérendrye's route to the West left Lake Superior, a great fur trade depot developed in the French period and continued to prosper after the arrival of the British in 1763. The British were forced to abandon Grand Portage after 1816, but the white occupation of the site has continued to the present. Among exploring traders who entered the Minnesota country during the British period were Jonathan Carver, Peter Pond, and David Thompson.

In southern Minnesota the earliest permanent white settlement grew up in the American period near the mouth of the Minnesota River on a tract that was acquired from the Indians by Lieutenant Pike in 1805. There in 1819 Fort St. Anthony, later called Fort Snelling, was established. To manufacture lumber for the fort, a government sawmill was built at the Falls of St. Anthony in 1821-22. The first steamboat pushed up the Mississippi to the Minnesota fort in 1823. Other white settlements developed in the vicinity—Mendota across the Minnesota River from the fort, St. Paul some miles down the Mississippi, and St. Anthony and Minneapolis on the same stream above the fort at the Falls of St. Anthony. Exploration continued in the American period. After Schoolcraft discovered Lake Itasca, the source of the Mississippi, in 1832, it became possible to determine definitely the northwestern boundary of what had been the Northwest Territory. The upper valley of the Father of Waters was explored also by Pike, Cass, Beltrami, and Nicollet.

In 1805 the United States acquired from the Indians tracts of land at the mouths of the Mississippi and St. Croix rivers, and in 1837, the area between the lower St. Croix and the Mississippi. Settlements began soon afterward at Dakota (Stillwater), Marine, and St. Croix Falls, and it was due in large part to the efforts of these settlements that what is now eastern Minnesota was not included in Wisconsin. In 1848 a land boom started at St. Paul and immigration to the region increased materially. In 1849 the area of eastern Minnesota, which had been successively a portion of the Northwest, Indiana, Illinois, Michigan, and Wisconsin territories, became a part of the new Minnesota Territory, which was admitted to the Union as a state in 1858. Indian title to lands in the region was extinguished by treaties in 1854 and 1866.

Thus, eighty-one years after the first cession to the United States of Indian lands in the Northwest Territory, territorial acquisition was complete.

It is not fair to leave consideration of growth of settlements without some mention of its religious aspect, particularly in view of the portentous clauses of the ordinance, "Religion, morality and knowledge being necessary to good government" and "no person, demeaning himself in a peaceable and orderly manner, shall ever be molested on account of his mode of worship." It is impossible even to estimate the influence of the French-Catholic missionaries upon the Indians and later white settlers. Nor can we evaluate the effect of the early Moravian effort to christianize the Indians in Ohio.

As soon as the Ohio Company settlers built their cabins, they provided educational opportunities for their children. Aside from the Moravian mission school for Indians at Schoenbrunn in 1773, the first school in Ohio was opened for the small children at Belpre in the summer of 1789. On the hill above Farmers' Castle lived Colonel Israel Putnam, who brought to Belpre many books that had belonged to his father, General Israel Putnam. With these books as a nucleus, the Belpre residents formed a library owned by a joint stock company with shares at ten dollars each. It was variously called the Putnam Library, the Belpre Library, and the Belpre Farmers' Library. It was the first American circulating library in the Northwest Territory.

A school was conducted at Marietta during the winter of 1788 by Tupper in the northwest blockhouse of Campus Martius. Teachers were employed regularly every year thereafter in Campus Martius and "The Point." On July 16, 1790, the Ohio Company made its first appropriation of \$150.00 for the support of schools. According to the contract of the Ohio Company with Congress, two townships near the center of the purchase were to be given by the national government for a university. Under this provision Ohio University was established at Athens in 1808 as the first state university in the world under democratic government.

CHAPTER VI

EVOLUTION OF THE STATES OF NORTHWEST TERRITORY

Adapted from R. G. Thwaites: see Wisconsin State Historical Society *Collections* (Madison, Wis.) XI (1888), 451-496.

As further evidence of George Washington's interest in the West, it was he who first suggested boundary lines for the northwestern states. September 7, 1783, he wrote to James Duane, Congressman from New York, regarding the future of the country beyond the Ohio. After giving some wise suggestions as to the management of both Indians and whites, he declared that the time was ripe for the creation of a state there. Here are the bounds proposed by the veteran surveyor:



NORTHWEST TERRITORY
with future state boundaries as specified by the
ORDINANCE OF 1787

“From the mouth of the Great Miami River, which empties into the Ohio, to its confluence with the Mad River, thence by a line to the Miami fort and village on the other Miami River, which empties into Lake Erie, and thence by a line to include the settlement of Detroit, would, with Lake Erie to the northward, Pennsylvania to the eastward and the Ohio to the southward, form a government sufficiently extensive to fulfill all the public engagements and to receive moreover a large population by emigrants. Were it not for the purpose of comprehending the settlement of Detroit within the jurisdiction of the new government, a more compact and better shaped district for a state would be, for the line to proceed from the Miami fort and village along the river of that name, to Lake Erie; leaving in that case the settlement of Detroit, and all the territory north of the rivers Miami and St. Joseph's between the Lakes Erie, St. Clair, Huron, and Michigan, to form hereafter another state equally large, compact and waterbounded.”

Thus did Washington roughly map out the present states of Ohio and Michigan.

Early in March, 1784, Congress instructed a committee to fashion a plan of government for the Northwest Territory. Thomas Jefferson, who was chairman, is given credit for drafting the committee's report, which was first taken up by Congress on April 19, 1784 and adopted after some amendment. The original draft is famous for Jefferson's fantastic proposal to divide the Northwest on parallels of latitude, into ten states with severely classical names: Sylvania, Michigania, Assenisipia, Illinoia, Polypotamia, Chersonesus, Metropotamia, Saratoga, Pelisipia, and Washington. While Congress practically accepted this system of territorial division, his proposed names were rejected, and each section was left to choose its own title when it should enter the Union.

These resolutions of April 23, 1784, lasted, on paper, until July 13, 1787, when the Congress of the Confederation adopted the Ordinance of 1787. The ordinance was specific in its provisions as to boundaries of the states to be later formed from the territory. Whether this reflected Washington's and Jefferson's

contemplated division, or whether, as is more probable, the statements of these men merely expressed a general feeling that the West and the nation itself would prosper best by pre-determination of boundaries, is not known.

Jefferson, in supporting his theoretical plan for sub-division, had urged a row of smaller or “buffer” states between the settled states of the East and those larger and presumably-to-become more powerful states along the Mississippi River.

In any case, the boundaries of states yet to be created were closely defined in article five of the compact, which, by its own terms, could only be altered by mutual consent of both parties. This was to result in almost continuous dispute for the next sixty years. Probably some fine points of law could be raised as to the meaning of “common consent” as applied to the “original states and *the people and states in the said Territory*.” Congress was apparently the qualified representative of the original states, but who could express the wishes of the “people and states of the said Territory?” Could any one state—or two states—consent to alterations, or must the entire territory also accede? With a definite authority for consent to alteration on one side, and vague power and conflicting interests on the other, the effect was that Congress essentially made the decisions as to altering the original terms of the compact.

Certainly, at the time, the geography of the Northwest Territory was not accurately determined and this accounts for the later logic of some of the changes made. The source of the Mississippi River, and therefore the western boundary of the territory, was not known until 1832. Maps of the period put the southern extremity of Lake Michigan some twelve miles north of where it actually was. But, beyond these physical reasons for not abiding by the terms of the compact, politics and selfish interests played a considerable part as the Northwest Territory was divided first into smaller territories and then into states.

More cynical people have been inclined to scoff at the worth of this “sacred compact,” so blithely violated upon several occasions. Not only do they propound the state boundaries incidents, but point out that the ordinance itself was adopted and put in effect unconstitutionally because only eight states voted for it, while the Articles of Confederation, then the constitutional law of the nation, provided that the vote of nine states was necessary to adoption.

The real value of the study of history lies first in having the exact facts, and then regarding them in the broad light of their major trends, and giving weight to details only as they may affect the whole. It is easy and rather tempting to select and over-emphasize lesser incidents of history and so, perhaps, distort the more important conclusions to be drawn.

Congress did violate the Articles of Confederation in adopting the ordinance, and the terms of the compact itself in determining the boundaries of states, but as in other history, the action was based upon the best knowledge available at the time, and, on the whole, the course pursued has proved to be right and posterity has approved it.

Twelve years after the ordinance was passed, Congress made its first division of the Northwest Territory. The act provided:

“That from and after the fourth day of July next, all that part of the territory of the United States northwest of the Ohio River which lies to the westward of a line beginning at the Ohio, opposite to the mouth of Kentucky River, and running thence to Fort Recovery, and thence north until it shall intersect the territorial line between the United States and Canada, shall, for the purposes of temporary government, constitute a separate territory, and be called the Indiana Territory.”

The country east of this line was still to be called the Northwest Territory, with its seat of government at Chillicothe, while Vincennes was to be the seat of government for Indiana Territory. That portion of the line running from the point of the Ohio, opposite the mouth of the Kentucky, northeastward to Fort Recovery, was designed to be but a temporary boundary, it being one of the lines established between the white settlements and the Indians, by the Treaty of Greenville, August 3, 1795.

The subsequent act of Congress, approved April 30, 1802, enabled “the people of the eastern division” of the Northwest Territory, Ohio, to draft a state constitution, and obliged them to take in their northern boundary and accept therefor “an east and west line drawn through the southerly extreme of Lake Michigan,” in accordance with the limits prescribed by the original ordinance. In the Ohio State Constitutional Convention, meeting at Chillicothe in November, this line had been acceded to, until the members learned that an experienced trapper,

then in the village, claimed that Lake Michigan extended farther south than was ordinarily supposed. It appeared that in the Department of State, at Washington, there was a map which placed the southern bend of Lake Michigan at $42^{\circ} 20'$, about 12 miles north of its actual location. This map had been used by the committee of Congress which drafted the Ordinance of 1787, and a pencil line was discovered upon it. The line passed due east from the bend and intersected the international line at a point between the River Raisin and Detroit. The Chillicothe convention became alarmed by the trapper's report of the incorrectness of Mitchell's map, and attached a proviso to the boundary article, as follows:



1800



1805

“Provided always, and it is hereby fully understood and declared by this convention, That if the southerly bend or extreme of Lake Michigan should extend so far south, that a line drawn due east from it should not intersect Lake Erie, or if it should intersect the said Lake Erie east of the mouth of the Miami River of the lake, then, and in that case, with the assent of the Congress of the United States, the northern boundary of this state shall be established by, and extending to, a direct line, running from the southern extremity of Lake Michigan to the most northerly cape of the Miami Bay.”

“The eastern division” of the Northwest Territory, now organized under the name of the state of Ohio, was admitted to the Union in 1803.



1809



1816

On the eleventh of January, 1805, an act of Congress was approved, erecting the Territory of Michigan out of "all that part of the Indiana Territory which lies north of a line drawn east from the southerly bend, or extreme, of Lake Michigan, until it shall intersect Lake Erie, and east of a line drawn from the said southerly bend through the middle of said lake to its northern extremity, and thence due north to the northern boundary of the United States." In short, the present southern peninsula of Michigan had a southern boundary as established by the Ordinance of 1787, and all that portion of the Upper Peninsula lying east of the meridian of Mackinac. Congress had admitted Ohio to the Union with a tacit recognition of the northern boundary laid down in her constitutional proviso. Geographical knowledge of the West was still so vague that this conflict of boundaries had been overlooked, and Michigan Territory was allowed a southern limit which overlapped the territory assigned to Ohio. Thus, when the southerly bend of Lake Michigan became known, a serious boundary dispute arose. Michigan claimed the ordinance was a compact which could not be broken by Congress, except by common consent; but Ohio clung to the strip of country which the constitution-makers at Chillicothe had secured for her in the eleventh hour. The wedge shaped strip in dispute averaged six miles in width, across Ohio, embraced 468 square miles, and included Toledo and the mouth of the Maumee River. May 20, 1812, Congress passed an act to determine the boundary; but owing to the impending war with Great Britain, the lines were not run until 1818, and then not satisfactorily. July 14, 1832, another act of Congress for the settlement of the northern limit of Ohio was passed. The situation of the compact had further complicated the territorial boundary when Congress attached the northeastern part of Louisiana purchase to Michigan Territory for temporary purposes of government.



1818



1837

By that time Michigan had begun to urge her claims to statehood, insisting on the southern boundary prescribed for the fourth and fifth states by the ordinance. The state of Virginia, as the chief donor of land, was asked to intercede in behalf of Michigan. Virginia officials were in accord with Michigan's contention, but failed to produce any effect on Congress, to whose dominant party the political sympathy of the actual state of Ohio was more important than the good-will of the prospective state of Michigan. Without waiting for an enabling act, a convention held at Detroit in May and June, 1835, adopted a state constitution for submission to Congress, demanding entry into the Union, "in conformity to the fifth article of the ordinance." The boundaries sought were those established by the fifth article. That summer there were a few disturbances in the disputed territory, and some gunpowder was harmlessly wasted. In December, President Andrew Jackson laid the matter before Congress in a special message. Congress quietly determined to arbitrate the quarrel by giving the disputed tract to Ohio and offering Michigan the whole of what is today her Upper Peninsula. However, Michigan did not want this supposedly barren and worthless country to the northwest, and protested against what was deemed an outrage. It was declared that Michigan had no interest in the north peninsula, and was separated from it by natural barriers for one-half of the year. It was further pointed out that the upper peninsula rightfully belonged to the fifth state to be formed out of the Northwest Territory. But Congress demanded the settlement of this dispute before the admission of Michigan into the Union. In September, 1836, a state convention, called for the sole purpose of deciding the question, rejected the proposition on the ground that Congress had no right to annex such a condition, according to the terms of the ordinance. A second convention, however, approved it on December 15 of the same year, and Congress at once accepted this decision as final. Thus Michigan came into the Union on January 22, 1837, with the same boundaries which she possesses today.

The creation of Michigan Territory in 1805 had left Indiana Territory with the Mississippi River as its western border, the Ohio River as its southern, the international boundary line and the south line of Michigan as its northern, while its eastern limits were the west line of Ohio, the middle of Lake Michigan and the meridian of Mackinac. This included the present states of Indiana, Illinois, Wisconsin, part of Minnesota, and the greater part of the Michigan upper peninsula.



1848



1858

The next division was ordained by act of Congress, approved February 3, 1809, when that portion of Indiana Territory lying west of the lower Wabash River and the meridian of Vincennes north of the Wabash became the Territory of Illinois. Indiana was thus left with her present boundaries, except that she owned a funnel-shaped strip of water and of land just west of the middle of Lake Michigan, between the Vincennes meridian and what was then western boundary of Michigan Territory, including that part of the present upper Michigan peninsula between the meridians of Mackinac and Vincennes, and her northern boundary was ten miles south of the present state boundary.

When Indiana was admitted to the Union, December 11, 1816, by act approved April 19, 1816, her northern boundary was established by Congress on a line running due east of a point in the middle of Lake Michigan ten miles north of the southern extreme of the lake. This again was a flagrant violation of the ordinance, with the excuse that Indiana must be given a share of the lake coast. Since there were then no important harbors or towns involved, Michigan made no serious objection to this encroachment on her territory.

The contraction of the northern boundaries of Indiana left the previously mentioned strip of water in Lake Michigan and the northern peninsula country literally a "No Man's Land." States and territories had been

formed around it, but this rich section of ore and pine lands was left for a while unclaimed.

The act of April 18, 1818, enabling Illinois to become a state, cut down her territory to its present limits. The northern boundary of Illinois was fixed at 42° 30', which is over 61 miles north of the southern bend of Lake Michigan, the northern boundary prescribed by the ordinance for the fourth and southern boundary of the fifth states to be formed. What later became Wisconsin was thereby deprived of 8,500 square miles of rich agricultural and mining country and numerous lake ports. This was done through the manipulation of Nathaniel Pope, Illinois' delegate in Congress at that time. Pope argued that Illinois must become intimately connected with the growing commerce of the northern lakes, or else her commercial relations upon the rivers to the south might cause her to join a southern confederacy in case the Union were disrupted. Illinois became a state December 3, 1818. Congress assumed the right to govern and divide the territory in the Northwest to suit itself, regardless of the solemn compact of 1787, and there seemed nothing to do but submit. The future proved that Michigan had been more than repaid for the loss of the Ohio border strip when she acquired the northern peninsula. However, Wisconsin lost this tract of territory which belongs to her geographically, and also the southern part of the state, which had been contemplated by the ordinance.

By act of June 12, 1838, Congress still further contracted the limits of Wisconsin Territory by adding the trans-Mississippi tract she had "inherited" from Michigan Territory to the new Territory of Iowa. However, this was in accordance with an earlier design when the northern Louisiana purchase country between the Mississippi and Missouri Rivers was attached to Michigan Territory for purposes of temporary government.

Wisconsin remained so bounded until the act of Congress approved August 6, 1846, enabled her people to form a state constitution. Settlements had now been established along the upper Mississippi and in the St. Croix Valley. While this area had been part of the original Northwest Territory, and was then part of Wisconsin Territory, it was far removed from the bulk of settlement in southern and eastern Wisconsin, and rather than be so remote from the rest of the state population, the settlers desired to join the new Territory of Minnesota, which was to be formed west of the Mississippi. They brought strong influences to bear in Congress, and an enabling act gave Wisconsin practically the same northwestern boundary that she has today—from the first rapids of the St. Louis River due south to the St. Croix River and thence to the Mississippi. This cut off an area of 26,000 more square miles from Wisconsin and assigned it to Minnesota. There was a sharp fight over the matter, both in Congress and in the Wisconsin Constitutional Convention of 1846 and 1847-48, with the result that the people of the St. Croix region won. Wisconsin was admitted into the Union, by act approved May 29, 1848.

The remaining portion of the original Northwest Territory west of Wisconsin finally became a part of the Territory of Minnesota, admitted as a state May 11, 1858.

CHAPTER VII

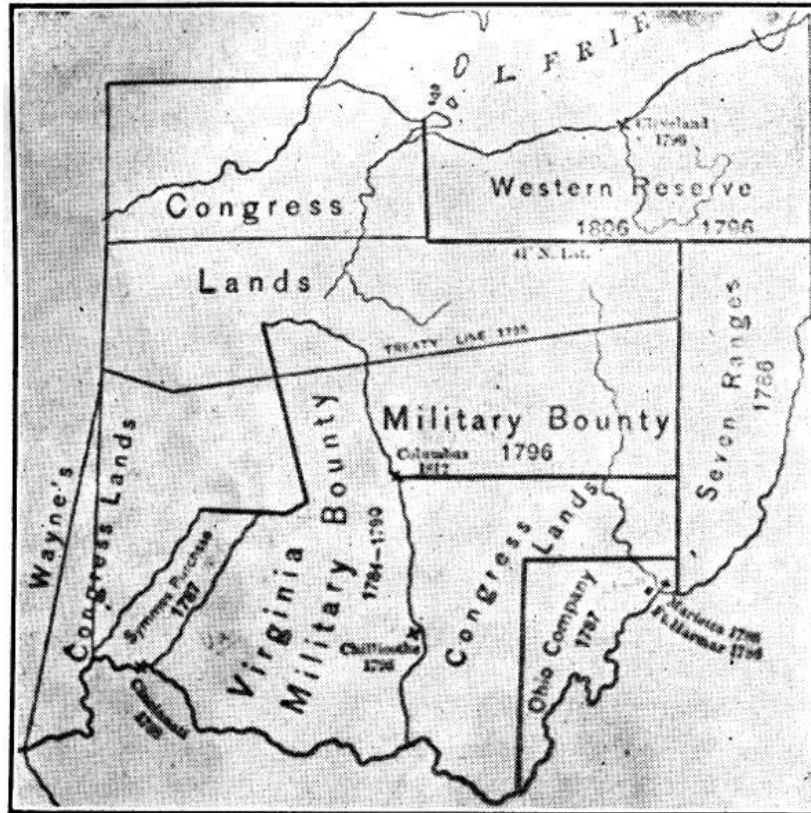
THE SIGNIFICANCE OF THE ORDINANCE OF 1787

The name "Old Northwest" implies that the five states included in it share a common historical and social background. Between its southern end, which looks down upon the beautiful Ohio, and its northern extremity, lapped by the blue waters of Huron and Superior, there are wide variations of geographic and economic conditions; yet the teeming millions who now inhabit this region are conscious of an identity of interests, and of a common outlook upon life, which gives to this section an individuality as distinct as that possessed by the people of New England, or of the Old South.

Any explanation of this individuality leads inevitably to the Ordinance of 1787. As mountain peaks overtop the surrounding plain, a few great legislative acts in our history tower above the vast body of statutes which fill the books in our law libraries. Magna Charta, extorted from reluctant King John at Runnymede 700 years ago, is one such document; the Quebec Act of 1774, fateful for the future of Canada and the United States, is another. Of like character are our Federal Constitution, and the Ordinance of 1787, both drafted in the same year; one for the government of the American nation, the other for the government of the land lying north and west of the Ohio River.

The Old Northwest was chiefly a wilderness in 1787, but it was not a vacant wilderness. Everywhere were the native red men, who quite naturally viewed the country as their own, to be defended to the last extremity of their power. At many points—Detroit, Maumee Rapids, Fort Wayne, Vincennes, Kaskaskia, Cahokia, St. Joseph, Prairie du Chien, Green Bay, and Mackinac, to mention a few—were civilized communities which had been founded by the French during the century which ended with the English Conquest of Canada in 1760. Following this, British officials and army officers, traders and adventurers, had entered the western country, and in many instances had inter-married with the older French and Indian population. Although the Treaty of Paris of 1783 had given the West to the new United States, with the Great Lakes and the Mississippi as its northern and western boundaries, the close of the Revolution found Great Britain and the Indians in actual possession of all but the southern tip of the Old Northwest, and this possession she did not surrender until the summer of 1796.

Thus before settlers from the seaboard colonies could occupy the country north of the Ohio, the British government must be expelled from it, and the Indian tribes must be conquered by the United States. The leaders who formed the Ohio Company were substantial New Englanders, many of whom had been officers in the Revolutionary War. They were familiar from infancy with the New England system of local government, and while they were ready to remove to the western country, to develop new homes in the wilderness, they had no thought of abandoning the shelter of organized government. South of the Ohio, settlers had moved into the western country on their individual responsibility, depending upon Virginia and their own resources for protection against savages and wilderness alike. This had been possible because the Kentucky country was not only a rich land of mild climate, but because it had long been a vacant wilderness, where no Indians lived, and no foreign government exercised jurisdiction. So the Boones and Kentons, and their comrades, had moved in before asking permission or protection from any civilized government. The New Englanders, on the contrary, had occupied the wilderness by organized communities, and from ancient habit had organized new towns as fast as they pushed the line of frontier settlement westward and northward. The Indians in the Ohio country were determined to keep the Americans out of it, and they enjoyed the sympathy and support of the British officials. Thus there was every reason why the intruding settlers should insist upon having an organized government go with them into the Northwest.



LAND SURVEYS IN OHIO WITH EARLY POSTS AND SETTLEMENTS

So their spokesman went to New York, and persuaded the Confederation Congress to give them the government they wished, and the Ordinance of 1787 was passed. It has been described in earlier chapters, and the purpose of this final section is to show how it influenced the future development of the Old Northwest, and the United States.

The object of the Ordinance is fully stated in its title, "An Ordinance for the Government of the Territory of the United States Northwest of the Ohio River." It contains two principal parts; the first describes the actual scheme of the government to be erected, while the second contains six articles which are declared to be a "compact" between the people of the original states and the people of the Northwest Territory. At that time the word "compact" was applied to the most solemn agreement known to political science, and the six articles of the present one were to "forever remain unalterable," unless changed by the common consent of the two parties concerned in it.

The thirteen colonies, which in 1776 declared their independence from England, all lay east of the Alleghany Mountains, with their settled portions extending barely two hundred miles inland from the seashore. Today our country extends from ocean to ocean, a distance of three thousand miles. It was the governmental conception which first found concrete expression in the Ordinance of 1787 which made possible this vast westward expansion of our country, and its development from a union of thirteen seaboard states into a continent-wide nation of forty-eight.

It came about this way: Before the American Revolution, colonies were universally regarded as dependencies, to be governed by the mother country for the promotion of its own advantage. After the conquest of Canada, the British ministry decided to maintain a standing army in America, and since the colonies were to be protected by it, the ministry determined that they should be taxed to support it. The colonists, however, refused to submit to such taxation, and after a long period of argument and debate, made good their refusal by waging a successful war against their king. This success marked the death of the old British Empire, and led directly to one of the most momentous political discoveries in human history.

The colonists had refused to be treated any longer as mere dependents, subject to the control of a distant parliament, in which they were not represented. But even before independence had been won, they found themselves face to face with the same problem, *how to govern a dependency*, which had baffled the wit of the British ministry. Some of the colonies had claims to portions of land west of the Alleghanies. Other colonies had none, and Maryland in particular demanded that all should share in the ownership of the western country which had been won by the “common blood and treasure” of all the colonies.

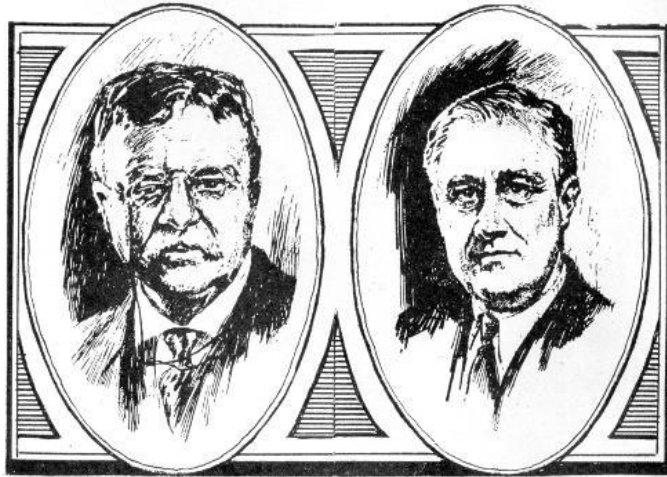


“No colony in America was ever settled under such favorable auspices as that which has just commenced at the Muskingum. I know most of the men personally, and there never were men better calculated to promote the welfare of such a community.”—GEORGE WASHINGTON.

“—that ordinance was constantly looked to whenever a new territory was to become a state. Congress always traced their course by the Ordinance of 1787.”—ABRAHAM LINCOLN.

The debate over this issue went on for several years in the Continental Congress, Maryland, meanwhile, stoutly refusing to accept any federal government until her demand concerning the western country should be met. Out of the long debate was gradually evolved a new political conception for the government of dependencies. The states having claims to lands in the western wilderness ceded them to the general government, to be administered for the common benefit of all; and Congress solemnly pledged that the country thus given to the nation should be organized into new states, which would be admitted to the Union *on a basis of equality with the existing states*.

This program for the government of America’s own colonial domain eliminated at a single stroke the grievance which had driven the older colonies into rebellion against their king and country. For their complaint, at bottom, was that they were regarded as politically inferior to their countrymen at home, subject to be governed forever by the latter, without regard to their own views or desires. The American program said, in effect, to the western colonists: “While you are few in numbers, strangers to one another, and menaced by hostile forces outside yourselves, the nation will govern and protect you, as a parent governs and protects his child; but as soon as you reach a state of maturity where you can do these things for yourselves, you will be admitted to the union of states, with the same powers and privileges that all the rest enjoy.”



"In truth the Ordinance of 1787 was so wide reaching in its effect, was drawn in accordance with so lofty a morality and such far seeing statesmanship, and was fraught with such weal for the nation, that it will ever rank among the foremost of American State papers."—THEODORE ROOSEVELT.

"—with respect to that third great charter—the Northwest Ordinance. The principles therein embodied served as the highway, broad and safe, over which poured the westward march of our civilization. On this plan was the United States built."—FRANKLIN D. ROOSEVELT.

Thus, and only thus, could the American nation ever have been extended "from sea to shining sea." The great political discovery which made this extension possible was hammered out in the heat of debate over the formation of our first national union, the government of the Confederation, which came into being in 1781. But it was first given concrete application in the Ordinance of 1787, which provided the form of government for the territory northwest of the Ohio River. This principle, unconfined by the boundaries of the Old Northwest, extends to all the continental expansion of the United States; while Great Britain, profiting by the lessons of experience, has granted self-rule to Canada, South Africa, New Zealand, and Australia, and is gradually extending it to India and Egypt.

The ordinance provided for two stages of government. In the beginning, all political control was entrusted to a governor and three judges, appointed by the federal government, who exercised the supreme executive, legislative, and judicial powers of the territory, and were answerable solely to the President and Congress of the United States. The territory in this first stage was a colony, whose citizens were without the powers of self-government.

As soon, however, as there were 5,000 free adult male inhabitants in the territory, the second stage of government was to be set up. This provided for a general assembly of two houses: the members of one elected by the voters; of the other, by a procedure in which both the voters and the national government shared. To resort again to the analogy of the minor child, we may compare the territory in this second stage with a boy of fourteen or fifteen, old enough to govern himself in ordinary matters, but still in need of parental guidance and control whenever more important problems arise. This state of partial self-government was to be terminated whenever the population of any of the future states (for which Article 5 of the compact made provision) should equal 60,000 free inhabitants. At such time the people might frame a state constitution and government, and be admitted to the Union "on an equal footing with the original states in all respects whatever." The child had now become a man, invested with all the privileges and responsibilities of manhood's estate.

Turning to the articles of the compact, Article 5 provides that not less than three, nor more than five, states should be formed from the entire territory, and the north-south boundaries of the three were fixed at approximately the present Ohio-Indiana and Indiana-Illinois lines, extended northward to Canada. If Congress should later see fit to do so, however, it might organize either one or two states in that portion of the territory lying north of an east and west line through the southern extreme of Lake Michigan. Congress eventually organized two northern states, but the provision concerning their southern boundary was ignored, and Ohio, Indiana, and Illinois all gained important accessions of territory north of the "Ordinance line," at the expense,

of course, of the two northern states. Although there was much opposition in Michigan and Wisconsin to these changes, in the end the will of Congress prevailed, and the compact of the ordinance with respect to boundaries was disregarded.

Thus, the five great commonwealths of the Old Northwest owe their existence, and the approximate location of their boundaries, to the Ordinance of 1787. All were governed as territories on the plan prescribed by the ordinance before their admission to statehood. The territorial period for each was marked by political discord, and numerous complaints were made against the officials the President placed over the territories. Many of these complaints were well-founded, but one would hesitate to affirm that any other form of government could have been devised to operate better. The inhabitants always had the consolation of knowing that their period of political dependence was but temporary, and that as soon as they should have the necessary population they would be invested with the powers and responsibilities of statehood.

We must now note briefly certain matters which are closely associated with the story of the Ordinance of 1787.

The corner-stone of our civilization is the institution of private property. Before the Northwest could be settled, the government had to provide for the division of the land into suitable tracts, and its sale to settlers. In 1785 the ordinance creating our national land-survey system was passed, and not long thereafter the first survey of federal lands, that of the Seven Ranges in southeastern Ohio, was begun.

Beginning in 1790, the government waged a five-year war in Ohio and Indiana, resulting in the overthrow of the Indian Confederacy. In 1796 the British government withdrew its garrisons, and its *de facto* government, which had continued until then in all the northern two-thirds of the Old Northwest, ceased to exist. In 1812 the region was reconquered by the British, but their rule this time lasted only a year, when it was ended for all time by the gun-fire of Commodore Perry's cannon in the battle of Lake Erie. Meanwhile, by a long series of treaties with the Indians, beginning with Anthony Wayne's Treaty of Greenville in 1795, the red man's title to the country was quieted. Government surveyors swarmed over the land, preparing it for purchase and occupancy by the oncoming tide of white settlers. Just sixty years after the appearance on the Ohio of the little band of Yankees who founded Marietta, Wisconsin, youngest of the five commonwealths of the Old Northwest, was admitted to the Union of States. The red race had given place to the white; civilization had succeeded barbarism; the wilderness had been transformed into cultivated fields and thriving cities and towns.

Certain of the articles of compact between the old states and the new demonstrate the advanced thought of the men who framed the ordinance. The first article guarantees forever complete freedom of religious belief and worship. Probably most Americans accept this precious privilege as they do the air they breathe, without giving any particular thought to its value or how it came to them. Yet even today, in many parts of the civilized world, freedom of religious belief and worship is conspicuously lacking.

In other important respects, too, the framers of the ordinance were far in advance of their age—in advance, even, of that more famous body of legislators who framed our national constitution. Included in the articles of compact is a provision guaranteeing the sanctity of private contracts—the first appearance of such a guarantee in any charter of government. This was copied into the United States Constitution, where it became the basis of the vast development of private corporations with which we are today familiar. In 1819 the Supreme Court, in the famous Dartmouth College Case, carried this guarantee to its logical conclusion by ruling that a charter or franchise is a contract, which, once granted by a state legislature or other governing body, cannot be withdrawn.

Of tremendous portent to our social system of today was the abolition of the age-old law of primogeniture, the concept that the eldest son alone should inherit the real estate of his parents. Thomas Jefferson had long contended in the Virginia legislature for the adoption of this reform, but it remained for the Ordinance of 1787 to make the first legal provision whereby children should share equally the estates of their parents.

Another provision, well in advance of the age, affords perhaps the most notable sentence in the entire document: "Religion, morality, and knowledge, being necessary to good government and the happiness of mankind, schools and the means of education shall forever be encouraged." In 1787 "schools and the means of education" found very little encouragement over most of the face of the globe. Today, America is dedicated to the ideal of universal education, and nowhere is more liberal encouragement extended to education than in the five states of the Old Northwest.

In its original contract with the Ohio Company, Congress agreed to give two townships of land for “the uses of a university.” In 1795, with the ink scarcely dry on General Wayne’s treaty with the red men at Greenville, the “college townships” were located and surveyed. In 1802 the legislature of the Northwest Territory passed an act establishing a university in the village of Athens—the first legislative act passed west of the Alleghany Mountains, for the advancement of higher education. Today, each of the five states not only maintains at public expense a great state university, but the pattern set in 1787 has resulted in a nationwide system of colleges and universities aided by grants of public lands. The principle, here originated, of devoting fixed portions of the public lands to the support of schools and education has produced the broadest plan of universal education in the world, providing thereby the most essential aid to the existence of democratic self-government.

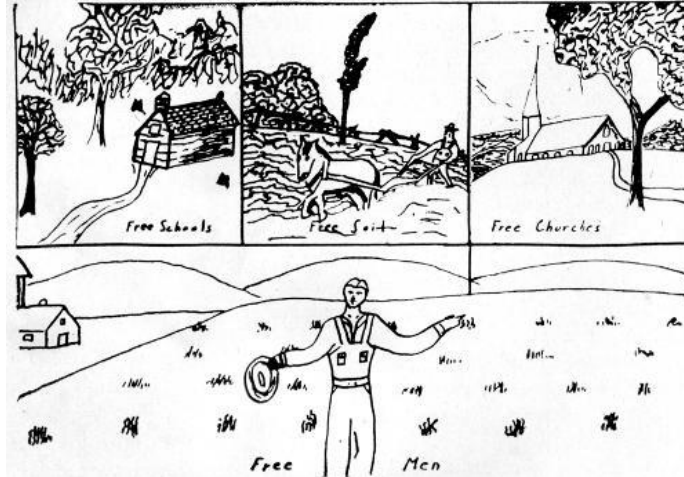
In still another respect the ordinance expressed a noble ideal, which, unfortunately, was destined not to be realized. At a time when the Indians of the Old Northwest were determined to prevent the Americans from ever entering the country, the ordinance held out to them the doctrine of the Golden Rule; they should ever be treated with the utmost good faith, their rights and liberties should be respected, and “laws founded in justice and humanity” should be enacted for preserving peace and friendship with them. If such an ideal could be generally realized between nations today, it would free a war-oppressed world from the greatest menace which threatens the continued existence of civilized society.

Another article in the compact proclaimed navigable waters leading into the Mississippi and the St. Lawrence to be common highways, “forever free” to the people of the United States. It is this guarantee which permits the humblest citizen of our country to use and enjoy the rivers and lakes of the Old Northwest for purposes of recreation and travel—a freedom which, but for this guarantee, would frequently be denied him by individual and corporate owners of real estate.

One final provision demands our attention. In 1787 the institution of human slavery existed in all but one of the states of the Union. But many humane and far-sighted men recognized its evils, and one in particular, Thomas Jefferson of Virginia, was unwearied in his efforts to abate it. Although Jefferson was not the author of the Ordinance of 1787, it was largely because of his influence that its final article dedicated the Old Northwest—then, of course, the *new* Northwest—to freedom. “There shall be neither slavery nor involuntary servitude in the said territory ...” the article begins, continuing with certain provisos respecting criminals and fugitives from justice. Several decades were to pass before the soil of the Old Northwest endured its last pollution from the footprints of a slave, but the prohibition proved an effective ban against the widespread expansion of slavery over the territory, and eventually exterminated it here completely. In doing so, the ordinance prepared the way for its ultimate extermination in the nation; for when civil war came and North and South faced each other on the field of battle during four awful years, it was the exuberant might of the free Northwest which decided the issue in favor of permanent Union and human freedom.

In 1787 the United States was a feeble confederacy of less than three million souls, almost all of whom dwelt within two hundred miles of the Atlantic seaboard. Today it stretches from sea to sea with a population of nearly 130,000,000. The thirteen original states have increased to forty-eight great and harmonious commonwealths. In the five states of the Old Northwest dwell 26,000,000 people. Mere numbers do not mean everything, however, else China and India would be the world’s foremost nations. The Old Northwest is today the political and industrial heart of the nation and, although the territory comprises but one-twelfth of the land area, one-fifth of the nation’s population lives within its boundaries.

The time that has elapsed since 1787 may be spanned by the lives of two elderly men, yet the changes which have been wrought in the Old Northwest since the first feeble American beginnings at Marietta would have staggered the imagination of any man then alive. Here began the political expansion of the United States; here the principles which made possible the development of the nation we know today were first concretely applied. Such is the historical significance of the Ordinance of 1787.



FREE SCHOOLS, FREE CHURCHES, FREE SOIL, FREE MEN

Drawn by Mary Brent Davis, Coshocton, Ohio

CONDENSED BIBLIOGRAPHY OF WORKS ON THE ORDINANCE OF 1787 AND THE HISTORY OF THE NORTHWEST TERRITORY

Compiled by
GEORGE J. BLAZIER
Historian to the Commission

This bibliography comprises general works relating to the Northwest Territory. To students desiring a more complete reference list, an extended bibliography prepared by the Commission will be sent without charge upon request. For additional works on the subject, and for single and local phases thereof, the reader is also directed to the best bibliographical works as follows:

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The Commission is indebted to Mrs. Katherine Van Fossen, of Columbus, Ohio, and to the Juvenile Departments of the Cincinnati and Cleveland Public Libraries for help in its compilation and checking.

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ANNOUNCING THE NORTHWEST TERRITORY CELEBRATION SCHOOL CONTESTS

Beginning October 15, 1937, and closing on February 15, 1938, the following contests will be held for all college and school students in Northwest Territory.

The contests follow:

CONTEST No. 1—for Grade School Students—4 Divisions.

The pupils in public, private and parochial schools, up to and including the 8th grade may enter. Grades 1, 2, 3, 4 will compete through art classes. Grades 5, 6, 7, 8 through essays.

The following classifications are made for purposes of even competition:

Division I—for Grades 1 and 2.

Each child entering is to submit two drawings or art projects, dealing with each of the following subjects:

(A) The American Bill of Rights—Free Speech—Religious Tolerance—Free Education, etc.

(B) Willingness to undergo suffering and hardships to accomplish one's purpose (such as the trek of the pioneers across the mountains in the dead of winter, etc.)

Drawings are to be 9 x 12 in size, and award will be made for idea conceived as well as execution.

Division II—for Grades 3 and 4.

Competition will be on same basis as is outlined for Division I—that is, based upon drawings or art projects, and same conditions.

Division III—for Grades 5 and 6.

Competition will be based upon an essay of not less than 600 or more than 1000 words. The subject shall be: "The Ordinance of 1787 and what it means to the United States and me today."

All essays shall be submitted on white paper 8½ x 11 sheets, written legibly on one side only. All sheets to be neatly fastened at the top.

Division IV—for Grades 7 and 8.

Competition also on essays, of not less than 1000 nor more than 1500 words. Essays are to be submitted as above under Division III.

CONTEST No. 2—for High School Students.

Students of public, private and parochial schools may enter.

There shall be two divisions of the contest for high school students.

Division I—for Students of the 9th and 10th Grades.

Competition shall be based upon essays of not less than 1500 nor more than 2000 words. Subject of essays to be your choice of the two following:

“Advent of the principles of the ‘rights of men’ into government and effect of their expression in the Ordinance of 1787 upon our nation today.”

“The development of public lands and colonial policies in America and our debt to the Ordinance of 1787.”

Division II—for Students of the 11th and 12th Grades

of public, private and parochial schools.

Competition to be based upon essays of not less than 1800 nor more than 2500 words. Subjects same as in Division I of Contest No. 2.

CONTEST No. 3—for College Students.

Open to all regularly entered undergraduates in the colleges and universities of Northwest Territory.

There will be but one division in this contest. Freshman to seniors compete in the same class. Competition will be based upon essays of 2500 to 3000 words. The subject chosen is optional with the entrant, but must relate to the Ordinance of 1787 and establishment of Northwest Territory.

Any angle or phase of that history; or combination of phases may be treated. Specialized theses, particularly premises and original research (while not necessary) are encouraged.

GENERAL CONTEST RULES for all divisions of Contest

No. 1. These contests will begin October 15, 1937, and close February 15, 1938. Begin now on your reading and study. On or before February 15, 1938, submit your drawings or essay (as provided for your division) to your teacher or professor.

Read and follow the rules below very carefully.

No. 2. At the top right-hand corner of the front page put the *grade* you are in. Do not put your name on the essay where it can be read.

The student shall put his or her name, age, grade, teacher, name of school, with home street address, city and state, into an envelope; seal the envelope and paste it firmly to the back of his or her essay or drawing, as the case may be.

No. 3. All essays must be legibly and neatly written or typed, and on the last page show the number of words contained (in the case of essays) and the contest number and division for which entry is made.

No. 4. You may if you wish, and the Commission will appreciate it if you do, append a list of the books you have read and the adults you have talked to about Northwest Territory history in preparation for your essay. This list is not *required*, and if submitted, is to be in *addition* to your essay.

No. 5. The preparation of your drawing or essay must be your own work. Read all you will, discuss the subject with others, but prepare your own submission. Right is reserved for the judges to refuse consideration to any entry which shows sufficient evidence of not being prepared by the student. When any sentence or other quotation from other source is made, be sure to use quotation marks around the quotation and to “indent” the lines quoted at least one inch from left margin of your own copy.

No. 6. Illustrations may be used in essays if desired but will not replace words. They may be either hand drawn or pasted-in illustrations clipped from other sources.

No. 7. Submit your essay or drawings (as the case may be) to your teacher by February 15, 1938. Announcement of awards will be made as soon as possible, probably before June 15th, by the Northwest Territory Celebration Commission.

No. 8. The recommendations of the judges will be final and entries submitted become the property of the Commission, with full rights of publication. The Commission assumes no responsibility for acts of the judges or miscarriage of mails, etc.

PRIZES

For Contest No. 1—Divisions I, II, III, IV.

That is for all grade students.

The winning entrant in each division of the contest, from each state of Northwest Territory, will receive a trip to Washington, D. C. and other points of interest along the route, under the following conditions:

A. The trip will be made by railroad train, with air-cooled Pullman from Chicago and return.

B. Special chaperons will be provided from each state to accompany the four children from that state. The chaperon will be the teacher in grades 1 to 8 inclusive, whose room turns in the highest percentage of entrants as related to scholars, in that particular state. In case of ties the chaperon will be chosen by lot or agreement.

C. All meals, berths, rail fare, sight seeing buses and proper expenses of both winning students and chaperons will be paid by the Commission.

D. Three full days in Washington, Mount Vernon, Arlington, and all the sights of the Nation's Capital.

E. The chaperons will take charge of the four winners from each state at the state capital. The Commission will pay the rail fare of each winner from his or her home to the state capital. Also the rail fare necessary for one parent of each winner to take the winner to and from the state capital where the chaperons take charge.

F. An engraved certificate of achievement will be given each child by a high officer of the United States Government while the party is in Washington.

G. There will be four winners from each state, or twenty-four from the territory, with six chaperons.

For Contest No. 2—Divisions I and II.

That is for all high school students.

The cash prizes offered in this contest are territory-wide. The scholarship prizes will be awarded within the states where the cooperating colleges are located.

Division I—9th and 10th Grades

1st cash prize to boy	\$125.00	1st cash prize to girl	\$125.00
2nd " " " "	75.00	2nd " " " "	75.00
3rd " " " "	37.50	3rd " " " "	37.50
4th " " " "	25.00	4th " " " "	25.00
5th " " " "	12.50	5th " " " "	12.50

Ten cash prizes \$550.00 total

Division II—11th and 12th Grades.

1st cash prize to boy	\$125.00	1st cash prize to girl	\$125.00
2nd " " " "	75.00	2nd " " " "	75.00
3rd " " " "	37.50	3rd " " " "	37.50
4th " " " "	25.00	4th " " " "	25.00
5th " " " "	12.50	5th " " " "	12.50

Ten cash prizes \$550.00 total

Besides this, the following universities and colleges have offered scholarships amounting to \$15,000 in value. These will be distributed first to winners in each state. If certain winners prefer a scholarship at a school listed but outside their own state, this will be available only if the scholarship has not been claimed by a winning contestant from the state where the college is located; and provided the entrant from another state is acceptable to the college.

Some of the scholarships offered are subject to prescribed high school standings and entrance requirements. These will be explained to the winning competitors. Most of the scholarships can be deferred if you are only a freshman, sophomore, or junior in high school, and will be available when you graduate.

INDIANA

Earlham College, Richmond, Ind. 1 scholarship—\$100.00 a year, subject to entrance requirements.	Co-ed
Hanover College, Hanover, Ind. 1 scholarship—\$100.00	Co-ed
Huntington College, Huntington, Ind. 1 scholarship—\$150.00	Co-ed
Indiana Central College, Indianapolis, Ind. 1 scholarship—\$100.00—freshman year, B average or better.	Co-ed
Purdue University, Lafayette, Ind. 4 four-year scholarships—freshman to senior.	Co-ed
St. Marys College, Notre Dame, Ind. 1 scholarship—\$250.00	Girl
St. Marys of the Woods College, St. Marys of the Woods, Ind. 1 scholarship—\$250.00 a year and renewable for 3 remaining years for students with A record and satisfactory character.	Girl
Rose Polytechnic Institute, Terre Haute, Ind. 1 four-year scholarship—\$200.00 a year.	Boy
Valparaiso University, Valparaiso, Ind. 2 scholarships—full tuition for 1 year, subject to entrance requirements.	Co-ed

ILLINOIS

Carthage College, Carthage, Ill. 1 scholarship—4 years, \$100.00 a year.	Co-ed
College of St. Francis, Joliet, Ill. 1 scholarship—\$150.00 a year, renewable if student's work is satisfactory.	Girl
Elmhurst College, Elmhurst, Ill. 1 four-year scholarship, subject to selective requirements for renewal.	Co-ed
Lake Forest College, Lake Forest, Ill. 1 scholarship—\$275.00—1 year, subject to entrance requirements.	Co-ed
McKendree College, Lebanon, Ill. 1 scholarship—\$50.00 a semester for 1 year, extension of 3 years at \$25.00 a semester for satisfactory record.	Co-ed
Monmouth College, Monmouth, Ill. 1 scholarship—\$100.00, extended for at least two years.	Co-ed
Rockford College, Rockford, Ill. 1 scholarship—\$250.00—a girl with satisfactory entrance requirements—in upper third of her high school class.	Girl

MICHIGAN

Alma College, Alma, Mich. 1 scholarship—1 year, \$100.00	Co-ed
Battle Creek College, Battle Creek, Mich.	Co-ed

1 scholarship, 1 year—\$100.00, subject to ability of student.	
Kalamazoo College, Kalamazoo, Mich.	Co-ed
1 scholarship—\$100.00 per year toward degree.	
University of Detroit, Detroit, Mich.	Co-ed
1 scholarship, 1 year—\$200.00, subject to entrance requirements.	

MINNESOTA

Augsberg Theological Seminary & College, Minneapolis, Minn.	
Co-ed	
Scholarship to high school student who might take first place in contest.	
College of St. Benedict, St. Joseph, Minn.	Girl
Complete tuition for one year.	
College of St. Catherine, St. Paul, Minn.	Girl
1 scholarship, 1 year—\$150.00, renewable on B average or better.	
Hamline University, St. Paul, Minn.	Co-ed
\$75.00—payable second semester.	
Macalester College, St. Paul, Minn.	Co-ed
\$75.00—one semester.	

OHIO

Ashland College, Ashland, Ohio	Co-ed
1 scholarship, 1st year—\$100.00, each year after, \$80.00, subject to achievement.	
Baldwin-Wallace College, Berea, Ohio	Co-ed
1 four-year scholarship—\$100.00 a year, B average or better.	
Bluffton College, Bluffton, Ohio	Co-ed
\$100.00 to be distributed over a period of two years.	
Cedarville College, Cedarville, Ohio	Co-ed
1 four-year scholarship—\$50.00 a year.	
College of Wooster, Wooster, Ohio	Co-ed
1 scholarship—\$110.00, subject to renewal each year on B average for 4 years.	
Findlay College, Findlay, Ohio	Co-ed
1 scholarship for 4 years—\$100.00 a year.	
Heidelberg College, Tiffin, Ohio	Co-ed
1 scholarship, 1 year.	
Hiram College, Hiram, Ohio	Co-ed
1 scholarship, 1 year—\$100.00.	
Kenyon College, Gambier, Ohio	Boy
2 scholarships—\$150.00, must meet entrance requirements.	
Lake Erie College, Painesville, Ohio	Girl
1 four-year scholarship—\$300.00 a year.	
Marietta College, Marietta, Ohio	Co-ed
1 scholarship, \$100.00 a year for two years.	
Miami University, Oxford, Ohio	Co-ed
1 scholarship, 1 year, extension beyond one year depends upon rank of recipient.	
Mount Union College, Alliance, Ohio	Co-ed
1 scholarship, 1 year—\$100.00, subject to entrance requirements, also entrant must reside within 50 miles of school.	
Muskingum College, New Concord, Ohio	Co-ed
1 scholarship, 4 years—\$50.00 a year.	
Ohio State University, Columbus, Ohio	Co-ed
2 two-year scholarships for high school seniors—\$60.00 a year.	
University of Dayton, Dayton, Ohio	Co-ed
1 scholarship, 1 year—\$100.00.	
Western Reserve University, Cleveland, Ohio	Co-ed

1 scholarship, tuition for 1 year for boy. 1 scholarship, tuition for 1 year for girl.
Both subject to entrance requirements.

Wilmington College, Wilmington, Ohio	Co-ed
1 four-year scholarship—\$160.00 a year.	
Xavier University, Cincinnati, Ohio	Co-ed
One tuition scholarship.	

WISCONSIN

Carroll College, Waukesha, Wisc.	Co-ed
1 scholarship, 1 year—\$100.00 a year.	
Lawrence College, Appleton, Wisc.	Co-ed
2 scholarships—\$100.00 each, renewal subject to entrance requirements.	
Ripon College, Ripon, Wisc.	Co-ed
1 scholarship, 2 years—\$150.00 a year.	

Contest No. 3—College Students.

This contest is Territory wide also.

1st prize to boy	\$300.00	1st prize to girl	\$300.00
2nd “ “ “	200.00	2nd “ “ “	200.00
3rd “ “ “	100.00	3rd “ “ “	100.00
4th “ “ “	75.00	4th “ “ “	75.00
5th “ “ “	50.00	5th “ “ “	50.00
6th “ “ “	25.00	6th “ “ “	25.00

12 prizes \$1500.00 total in cash

Also:

University of Chicago, Chicago, Ill.	Co-ed
1 scholarship—\$300.00 for post-graduate work, to one of first four winners in College Division.	

METHOD OF JUDGING—FOR GRADE SCHOOL CONTEST—CONTEST No. 1

Each school principal will be in charge of judging the entries from that school. The actual work can be parcelled out among the teachers under the principal's supervision.

The *two best* entries from *each division* of this contest should be selected and forwarded within two weeks of the close of the contest, February 15, 1938, to either the city superintendent or the county superintendent as the case may be. This *individual school* judging should be completed by March 1st, 1938. In the case of city schools the city superintendent of schools will arrange for judging the entries selected by school principals and will submit the one best *in each of the four divisions* from his city, to the State Department of Education in his state. This city judging should be completed within two weeks or by March 15, 1938.

In the case of country schools, the county superintendent will provide for the judging of the school winners in each division submitted by principals, and will forward the *one best* in each of the four divisions to the State Department of Education in his state. As in the case of city schools, this should be accomplished by March 15th, 1938.

The State Departments of Education will judge the winners as submitted by county and city superintendents, and notify the Northwest Territory Celebration Commission (Federal) at Marietta, Ohio, as to the one winner in each of the four divisions of the grade schools within that state. This advice should reach the Commission by May 15th, and awards will be made at once. Parochial and private schools shall follow the procedure outlined above, submitting to city or county superintendents of public instructions and through them to State

Departments of Education, etc. There will thus be four winners, one from each division of the contest, within each state.

METHOD OF JUDGING—FOR HIGH SCHOOL CONTEST—CONTEST No. 2

The procedure for judging the two divisions of high school students shall be the same as in Contest No. 1—except that the *two winners from each division of the contest* should be sent by county superintendents to the State Department of Education.

From these essays the State Department of Education shall submit the *twenty-five* best essays from that state to the Northwest Territory Celebration Commission by May 15th, 1938.

This Commission will select cash prize winners from each state of the territory and will award scholarship prizes in accordance with population of state and number of colleges and universities in each state which offer scholarship prizes.

METHOD OF JUDGING COLLEGE ENTRIES

Each college will appoint its own board of judges of its own entries and the board shall choose the best entry made by a male and the best entry made by a female student and shall submit them to the Northwest Territory Celebration Commission (Federal), Marietta, Ohio, by May 15th, 1938.

GENERAL

This division of the work of judging does not place an extreme burden on anyone and yet is fair.

The Commission assumes no responsibility for the failure of any of the judges to perform their functions properly and promptly.

*** END OF THE PROJECT GUTENBERG EBOOK HISTORY OF THE
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